

## COMPLETE LEARNING SESSION

# UNION TERRITORIES - COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

### LEARNING PATH



*Deterministic fallback visual: move from precise concepts through argument and critique to exam application.*

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

# UNION TERRITORIES - COMPLETE LEARNING SESSION

**Subject:** Indian Polity | **Topic:** 25 | **Level:** Core answer-complete, then optional advanced depth

## SOURCE CONTROL AND LIMITS

- Canonical Markdown was read first and remained read-only: `basic/Union-Territories.md`, `25_Union-Territories_Complete-Topic-Package.md`, `advanced/25_Union-Territories.md`, and `basic/Union-and-Territory.md` only for Articles 1-4.
- OCR-searchable local books were checked next: *Indian Polity* by M. Laxmikanth, PDF pages 846-856, and *Courseware on Indian Polity* by M. Laxmikanth, chapter 41 beginning at PDF page 825. Their pre-2020 inventory was corrected through later official law.
- Constitutional text was controlled through the repository-held official Constitution updated 1 May 2026, including Articles 1-4, 239-242, 246(4), the Fourth Schedule and the new Article 239AA women's-reservation clauses read with Article 334A.
- Official controls checked were the Government of Union Territories Act, 1963; GNCTD Act, 1991 and Act 19 of 2023; J&K Reorganisation Act, 2019 and official amendments/rules; ECI 2024 J&K election material; MHA 2026 material; and official Supreme Court judgments in the 2018 Delhi case, 2023 Delhi services case, *K. Lakshminarayanan* and *In Re Article 370*.
- Current legal and institutional status is controlled to **7 September 2026, Asia/Kolkata**.
- No final official Supreme Court merits judgment invalidating Act 19 of 2023 was located by the control date; the Act is therefore stated as operative while challenge remains pending.
- No official enactment restoring J&K Statehood was located by the control date. The 2024 election restored an elected UT Assembly, not Statehood.
- Direct MHA annual-report and National Portal page fetches returned access restrictions; official search results, accessible Gazette/judgment material, repository-held official constitutional text and the official J&K Act PDF were used. Qdrant was not required.

## HOW TO READ THE EVIDENCE

- **[FACT]** constitutional, statutory, judicial or official proposition.
- **[CURRENT]** proposition checked to 7 September 2026.
- **[ANALYSIS]** reasoned constitutional or governance inference.
- **[LIMIT]** qualification preventing overstatement or stale-law use.

## BASIC LEARNING SESSION

### ROADMAP

| Block                        | Sessions | Outcome                                                                         |
|------------------------------|----------|---------------------------------------------------------------------------------|
| Concept, evolution and map   | 1-4      | identify the eight UTs and explain why the category is asymmetric               |
| Constitutional machinery     | 5-14     | master Articles 239-242, 246(4), representation, courts and local government    |
| Delhi                        | 15-21    | write the 69th Amendment, 2018/2023 doctrine and current services law precisely |
| Puducherry                   | 22-23    | explain Article 239A, the 1963 Act and nominated-member doctrine                |
| J&K, Ladakh and trajectories | 24-29    | explain the 2019 Act, 2024 election, Statehood limit and recent map changes     |
| Synthesis                    | 30-31    | evaluate asymmetry and write reforms                                            |

# SESSION 1 - WHY UNION TERRITORIES ARE A DISTINCT CONSTITUTIONAL CATEGORY

## VISUAL FIRST

FULL STATE

-> constitutionally distributed Union-State fields

UT WITH LEGISLATURE

-> elected government + Administrator/LG + continuing parliamentary competence

UT WITHOUT LEGISLATURE

-> President -> Administrator/LG -> Union-led territorial administration

*Caption: The category is a spectrum of differentiated territorial government, not one uniform model.*

## DEFINITION

A Union Territory is a territory included in India but administered under Part VIII rather than the ordinary Part VI State framework.

## ANSWER-GRABBING LINE

Union Territory status is India's constitutional device for combining territorial inclusion with a stronger Union role, while permitting different degrees of representative self-government.

## MUST-WRITE KEYWORDS

Part VIII; differentiated governance; Union responsibility; territorial administration; asymmetric design

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** UT administration is deliberately heterogeneous. **Named evidence:** Articles 239, 239A and 239AA create direct administration, a statutory-legislature route and Delhi's special constitutional model. **Analysis:** the Constitution calibrates local democracy to capital, strategic, historical and administrative conditions instead of imposing one structure. **Qualification:** heterogeneity does not make an elected UT government merely advisory within every field lawfully assigned to it.

## EVIDENCE AND EXPLANATION

- [FACT] Article 1 includes States, Union Territories and acquired territories within the territory of India.
- [FACT] Part VIII contains the UT-specific constitutional framework.
- [ANALYSIS] The strongest description is asymmetric territorial governance, not uniform central rule.
- [LIMIT] A UT is not a State, but residents retain constitutional rights, courts, parliamentary representation and local institutions.

## PRELIMS TRAP

Do not equate every UT with a legislature-free centrally run district.

## MAINS USE

Use this spectrum as the opening frame for any question on democracy versus Union control in Delhi, Puducherry or J&K.

## RECAP

territory of India -> Part VIII -> multiple UT models -> calibrated Union control

## SESSION 2 - CONSTITUTIONAL DEVELOPMENT FROM PART C AND PART D TO PART VIII

### VISUAL FIRST

1874 scheduled districts  
-> Chief Commissioners' Provinces  
1950 Constitution  
-> Part C States + Part D territory  
1956 Seventh Amendment + States Reorganisation Act  
-> modern Union Territory category  
later decades  
-> some UTs became States; acquired territories entered as UTs

*Caption: The modern category emerged in 1956 from earlier centrally administered arrangements.*

### DEFINITION

Constitutional development is the shift from colonial centrally administered areas and the 1950 Part C/Part D classification to the post-1956 Union Territory framework.

### ANSWER-GRABBING LINE

The Seventh Amendment did not merely rename territories; it replaced the Part C/Part D scheme with a flexible category capable of both durable Union administration and later Statehood.

### MUST-WRITE KEYWORDS

1874; Chief Commissioners; Part C; Part D; Seventh Amendment; States Reorganisation Act 1956

### UNION TERRITORIES PARAGRAPH LAB

**Claim:** UT status has served both permanent and transitional purposes. **Named evidence:** the Seventh Amendment and States Reorganisation Act, 1956 created the modern framework, while Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh and Goa later became States. **Analysis:** constitutional status responds to changing administrative and political conditions. **Qualification:** no legal presumption requires every UT eventually to become a State.

### EVIDENCE AND EXPLANATION

- [FACT] Article 242 on Coorg was omitted by the Seventh Amendment with effect from 1 November 1956.
- [FACT] Part VIII's heading replaced the earlier Part C States heading.
- [FACT] Former French and Portuguese possessions followed distinct accession and statutory histories before their present status.
- [LIMIT] Historical reasons explain creation but do not themselves confer present powers.

### PRELIMS TRAP

Do not treat the present eight-UT map as the original 1950 or 1956 map.

### MAINS USE

Use the timeline to show that territorial status is constitutionally adaptable rather than permanently fixed.

### RECAP

colonial central areas -> Part C/D -> 1956 UT framework -> Statehood or continuing UT status

## SESSION 3 - ARTICLES 1 TO 4 AND ARTICLE 3 REORGANISATION POWER

### VISUAL FIRST

Article 1: India = Union of States; territory includes UTs  
Article 2: admission or establishment of new States  
Article 3: formation, area, boundary or name changes  
Article 4: consequential First/Fourth Schedule changes are ordinary law

|  
v

Parliament can create, merge or alter a UT through the constitutional route

*Caption: Part VIII governs UT administration; Articles 1-4 govern the territorial map.*

### DEFINITION

Articles 1-4 form the constitutional map-changing framework within which Parliament reorganises States and Union Territories.

### ANSWER-GRABBING LINE

A complete UT answer must separate territorial creation under Articles 1-4 from day-to-day administration under Articles 239-241.

### MUST-WRITE KEYWORDS

Article 1; Article 3; Article 4; First Schedule; reorganisation; ordinary law

### UNION TERRITORIES PARAGRAPH LAB

**Claim:** Territorial status and governmental powers arise from different constitutional questions. **Named evidence:** Article 3 enables formation and alteration, Article 4 permits consequential Schedule changes without using Article 368, and Part VIII supplies the administrative model. **Analysis:** Parliament may redraw the map and then attach a distinct statutory or constitutional governance architecture. **Qualification:** the Article 3 State-legislature reference procedure does not give the affected State a veto.

### EVIDENCE AND EXPLANATION

- [FACT] The First Schedule records the names and territorial extent of States and UTs.
- [FACT] The J&K Reorganisation Act, 2019 used parliamentary legislation to create two UTs.
- [FACT] The DNH-DD Merger Act, 2019 created one merged UT from 26 January 2020.
- [LIMIT] Article 3 competence should not be confused with the merits or democratic wisdom of a particular reorganisation.

### PRELIMS TRAP

Article 4 says qualifying reorganisation laws are not constitutional amendments for Article 368 merely because they amend the First or Fourth Schedule.

### MAINS USE

Use creation -> administration -> democratic consequences as three separate analytical steps.

### RECAP

Articles 1-4 change territory -> First Schedule records it -> Part VIII governs it

## SESSION 4 - CURRENT EIGHT UNION TERRITORIES AND ADMINISTRATIVE FORMS

### VISUAL FIRST

#### WITH LEGISLATURE

- Delhi/NCT - Lieutenant Governor + elected government
- Puducherry - Lieutenant Governor + elected government
- Jammu and Kashmir - Lieutenant Governor + elected government

#### WITHOUT LEGISLATURE

- A&N Islands - Lieutenant Governor | Ladakh - Lieutenant Governor
- Chandigarh - Administrator | DNHDD - Administrator | Lakshadweep - Administrator

*Caption: Position checked to 7 September 2026; titles describe appointment practice, not identical powers.*

### DEFINITION

The current UT map contains eight territories, three with legislatures and five without legislatures.

### ANSWER-GRABBING LINE

The title 'Lieutenant Governor' or 'Administrator' does not determine constitutional power; the controlling Article, Act and rules do.

### MUST-WRITE KEYWORDS

eight UTs; three legislatures; five without legislature; title-practice distinction; 7 September 2026

### UNION TERRITORIES PARAGRAPH LAB

**Claim:** Administrative title is an unreliable shortcut to legal authority. **Named evidence:** A&N and Ladakh both use Lieutenant Governors but lack legislatures, while Delhi, Puducherry and J&K combine Lieutenant Governors with elected governments under different legal sources. **Analysis:** power follows the governing instrument, not nomenclature. **Qualification:** officeholders and concurrent appointments may change without altering the underlying constitutional model.

### EVIDENCE AND EXPLANATION

- [CURRENT] The eight are A&N, Chandigarh, DNHDD, Delhi, J&K, Ladakh, Lakshadweep and Puducherry.
- [CURRENT] Delhi, Puducherry and J&K have legislatures.
- [FACT] Chandigarh's Administrator may concurrently be Punjab's Governor under an Article 239(2) appointment, but the capacities remain legally separate.
- [LIMIT] This inventory is date-stamped because territorial status can change by law.

### PRELIMS TRAP

Do not count Dadra and Nagar Haveli and Daman and Diu as two UTs after 26 January 2020.

### MAINS USE

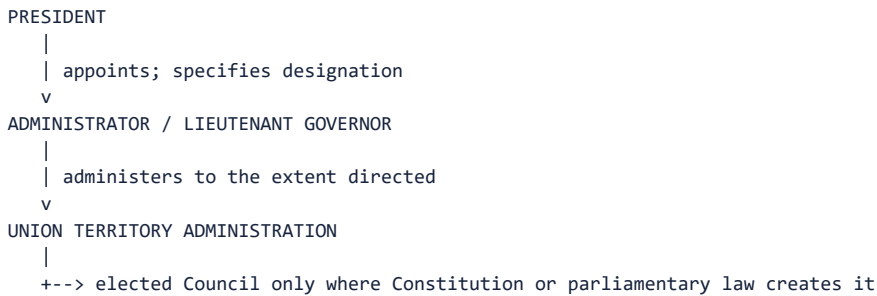
Use the inventory to establish the present map before comparing constitutional models.

### RECAP

8 total -> 3 legislatures -> 5 direct-administration models -> titles do not decide power

## SESSION 5 - ARTICLE 239 AND THE PRESIDENT-ADMINISTRATOR CHAIN

## VISUAL FIRST



*Caption: Article 239 is the default executive architecture.*

## DEFINITION

Article 239 provides that, save as Parliament otherwise provides by law, every UT is administered by the President acting through an Administrator appointed by him.

## ANSWER-GRABBING LINE

The Administrator is the President's constitutional channel in a UT, not a coordinate territorial sovereign.

## MUST-WRITE KEYWORDS

Article 239; President; Administrator; agent; designation; parliamentary exception

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Article 239 establishes Union responsibility but leaves room for differentiated statutory design. **Named evidence:** its opening words, 'save as otherwise provided by Parliament by law', coexist with the President-through-Administrator rule. **Analysis:** Parliament can create elected institutions without converting the UT into a State. **Qualification:** specific provisions such as Article 239AA or the 1963 and 2019 Acts displace broad inferences drawn from Article 239 alone.

## EVIDENCE AND EXPLANATION

- [FACT] The President appoints the Administrator and may specify the designation.
- [FACT] Article 239(2) permits a State Governor to administer an adjoining UT.
- [FACT] In that separate capacity the Governor acts independently of the State Council of Ministers.
- [LIMIT] 'Agent of the President' does not authorise action contrary to the Constitution, statute or binding judicial interpretation.

## PRELIMS TRAP

Do not import every Part VI Governor rule into the office of a UT Administrator.

## MAINS USE

Use Article 239 to identify the default, then state the relevant special law before discussing discretion.

## RECAP

President -> appointed Administrator -> UT-specific law qualifies the default

# SESSION 6 - ADMINISTRATOR TITLE, CAPACITY AND CONSTITUTIONAL POWER

## VISUAL FIRST

| SAME TITLE?         | SAME POWER? |
|---------------------|-------------|
| Lieutenant Governor | NO          |
| Administrator       | NO          |
| Chief Commissioner  | NO          |

### POWER TEST

Constitutional Article -> parliamentary Act -> rules -> binding judgment -> facts

*Caption: Designation is descriptive; legal source is determinative.*

## DEFINITION

Capacity analysis identifies the legal source under which an Administrator acts in a particular UT and matter.

## ANSWER-GRABBING LINE

In UT disputes, begin with legal capacity, because the same title can conceal sharply different legislative, executive and discretionary arrangements.

## MUST-WRITE KEYWORDS

capacity; designation; source of power; discretion; legal instrument; judicial review

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Nomenclature cannot substitute for constitutional analysis. **Named evidence:** Delhi's LG operates under Article 239AA, Puducherry's under the 1963 Act, J&K's under the 2019 Act, and Ladakh's under Article 239 plus section 58. **Analysis:** identical titles produce different advice, reference and law-making relationships. **Qualification:** administrative practice may supplement but cannot enlarge a power beyond its legal source.

## EVIDENCE AND EXPLANATION

- [FACT] The Constitution permits the President to choose an Administrator's designation.
- [FACT] Delhi's LG is expressly designated by Article 239AA.
- [FACT] J&K and Ladakh LG offices arise through the Reorganisation Act read with Article 239.
- [ANALYSIS] The correct UPSC method is source -> field -> procedure -> limit.

## PRELIMS TRAP

An LG is not necessarily more powerful than an Administrator merely because of the title.

## MAINS USE

Use capacity analysis to prevent false Delhi-Puducherry-J&K equivalence.

## RECAP

title is practice -> source creates power -> field and procedure define limits

# SESSION 7 - ARTICLE 239A, THE FOURTEENTH AMENDMENT AND ORDINARY-LAW DESIGN



## VISUAL FIRST

Fourteenth Amendment Act, 1962  
|  
v  
Article 239A  
|  
Parliament may by ordinary law create for Puducherry:  
legislature (elected or partly nominated) and/or Council of Ministers  
|  
Government of Union Territories Act, 1963  
|  
J&K Reorganisation Act 2019, section 13 applies Article 239A to J&K

*Caption: Article 239A is an enabling bridge from the Constitution to detailed parliamentary legislation.*

## DEFINITION

Article 239A authorises Parliament to create specified UT legislatures and Councils of Ministers by law, with the constitution, powers and functions stated in that law.

## ANSWER-GRABBING LINE

Article 239A constitutionalises Parliament's power to design local self-government without constitutionalising every institutional detail.

## MUST-WRITE KEYWORDS

Fourteenth Amendment; Article 239A; ordinary law; Puducherry; section 13; statutory legislature

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Puducherry and J&K have real but statutory legislatures. **Named evidence:** Article 239A(2) says the parliamentary law is not an Article 368 amendment even if it amends or has the effect of amending the Constitution; the 1963 Act and section 13 of the 2019 Act operationalise the route. **Analysis:** Parliament retains greater design flexibility than it has over Delhi's Article 239AA core. **Qualification:** statutory origin does not make legislative acts non-binding within the granted field.

## EVIDENCE AND EXPLANATION

- [FACT] Article 239A was inserted by the Fourteenth Amendment with effect from 28 December 1962.
- [FACT] Its present constitutional text names Puducherry.
- [FACT] Section 13 of the J&K Reorganisation Act applies its provisions to J&K.
- [LIMIT] Delhi's legislature is not sourced from Article 239A; it is constitutionally anchored in Article 239AA.

## PRELIMS TRAP

Do not attribute Puducherry's legislature to the Sixty-ninth Amendment.

## MAINS USE

Contrast constitutionally entrenched Delhi with ordinary-law Puducherry and J&K.

## RECAP

14th Amendment -> Article 239A -> Parliament's law -> Puducherry and applied J&K models

# SESSION 8 - THREE UNION TERRITORY LEGISLATURES COMPARED

## VISUAL FIRST

| DELHI                                            | PUDUCHERRY            | J&K                    |
|--------------------------------------------------|-----------------------|------------------------|
| Art 239AA                                        | Art 239A + 1963 Act   | 2019 Act + s.13        |
| excludes 1,2,18                                  | no equivalent blanket | excludes 1,2           |
| and related 64-66                                | three-entry exclusion | (public order, police) |
| CM by President                                  | CM by President       | CM by LG               |
| Parliament retains competence over all three UTs |                       |                        |

*Caption: The shared label 'UT with legislature' hides different legal foundations and exclusions.*

## DEFINITION

A UT legislature is an elected territorial law-making body whose competence is granted by the Constitution or parliamentary statute and remains subject to Parliament's continuing UT power.

## ANSWER-GRABBING LINE

Delhi, Puducherry and J&K form a family of bounded self-government, not a single replicated model.

## MUST-WRITE KEYWORDS

Delhi; Puducherry; J&K; constitutional legislature; statutory legislature; reserved subjects

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Legislative autonomy differs across the three elected UTs. **Named evidence:** Delhi excludes public order, police and land; J&K excludes public order and police; Puducherry's section 18 grants applicable State and Concurrent List fields without the same blanket exclusions. **Analysis:** institutional autonomy must be measured entry by entry and statute by statute. **Qualification:** Parliament's Article 246(4) competence remains over all three.

## EVIDENCE AND EXPLANATION

- [FACT] All three have Councils collectively responsible to their Assemblies.
- [FACT] Delhi's core is constitutional; Puducherry's and J&K's detailed structures are statutory.
- [FACT] Repugnancy and assent mechanisms differ in drafting but preserve parliamentary supremacy.
- [LIMIT] 'With legislature' does not equal Statehood.

## PRELIMS TRAP

Land is excluded for Delhi but not blanket-excluded from J&K's section 32 field.

## MAINS USE

A comparison table immediately improves answers on asymmetric federalism.

## RECAP

three legislatures -> different sources -> different exclusions -> same continuing Parliament

# SESSION 9 - ARTICLE 246(4) AND PARLIAMENT'S ALL-SUBJECT UT POWER

## VISUAL FIRST

TERRITORY INCLUDED IN A STATE?

YES -> ordinary Union/State distribution under Article 246

NO -> Article 246(4)

Parliament may legislate on ANY matter  
including a State List matter

|

local UT legislature remains within its granted field

*Caption: Article 246(4), not Article 240, supplies Parliament's general State-List power for UTs.*

## DEFINITION

Article 246(4) authorises Parliament to make laws on any matter for a territory not included in a State, notwithstanding that the matter appears in the State List.

## ANSWER-GRABBING LINE

A UT Assembly possesses concurrent territorial authority, not the constitutionally exclusive State-List sphere of a State legislature.

## MUST-WRITE KEYWORDS

Article 246(4); State List; parliamentary competence; UT legislature; non-exclusive field

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** The enduring constitutional distinction between a State and a legislative UT is Parliament's ordinary State-List competence. **Named evidence:** Article 246(4) applies to territory not included in a State, while Article 239AA(3)(b), section 21 of the 1963 Act and section 35 of the 2019 Act preserve parliamentary priority. **Analysis:** elected responsibility operates under an overriding national legislature. **Qualification:** supremacy must be applied through the relevant conflict rule; it does not erase every valid local law automatically.

## EVIDENCE AND EXPLANATION

- [FACT] Parliament can legislate for all eight UTs on State List subjects.
- [FACT] Delhi's own clause expressly says its Assembly power does not derogate from Parliament.
- [ANALYSIS] Central competence explains both national coordination and recurring accountability conflict.
- [LIMIT] Parliament's legal competence and the policy wisdom of using it are separate questions.

## PRELIMS TRAP

Article 240 is territory-specific presidential regulation, not Parliament's general UT competence.

## MAINS USE

Use Article 246(4) as the central constitutional differentiator between State and UT-with-legislature.

## RECAP

territory not in State -> Parliament all lists -> local field remains defeasible

# SESSION 10 - LOCAL LAW, PARLIAMENTARY LAW AND REPUGNANCY

## VISUAL FIRST

```
LOCAL UT ASSEMBLY LAW
|
conflict with parliamentary or protected earlier law?
|
+--> no: local law operates
|
+--> yes: parliamentary/earlier law prevails
      |
      +--> Presidential assent may protect local law territorially
      +--> later Parliament may still add, amend, vary or repeal
```

*Caption: The conflict rule preserves local law-making but makes it ultimately defeasible.*

## DEFINITION

UT repugnancy is the rule for resolving conflict between a territorial Assembly law and parliamentary or protected earlier law in the same field.

## ANSWER-GRABBING LINE

Parliamentary supremacy in a UT is structured through conflict and assent rules, not through the fiction that territorial legislation has no force.

## MUST-WRITE KEYWORDS

repugnancy; presidential assent; later override; territorial operation; parliamentary supremacy

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** UT legislative power is legally meaningful but hierarchically limited. **Named evidence:** Article 239AA(3)(c), section 21 of the 1963 Act and section 35 of the 2019 Act preserve a President-assented territorial law while allowing later parliamentary override. **Analysis:** this creates local policy space without surrendering Union primacy.

**Qualification:** the exact trigger and field must be read from the governing provision rather than assumed from Article 254 alone.

## EVIDENCE AND EXPLANATION

- [FACT] Delhi's repugnancy rule appears in Article 239AA(3)(c).
- [FACT] Puducherry and J&K use statutory conflict provisions.
- [FACT] Presidential assent can give local territorial priority, but not immunity from later Parliament.
- [LIMIT] A mere policy difference is not automatically legal repugnancy.

## PRELIMS TRAP

Do not say Parliament and a UT Assembly are equal lawmakers within the UT.

## MAINS USE

Use the ladder to explain 'real autonomy, ultimate Union priority'.

## RECAP

valid local law -> conflict test -> assent qualification -> later Parliament remains supreme

# SESSION 11 - ARTICLE 239B ORDINANCES: PUDUCHERRY-TYPE RECESS POWER

## VISUAL FIRST

Puducherry Legislature NOT in session  
+ immediate action necessary  
+ prior instructions from President  
|  
v  
Administrator promulgates ordinance  
|  
laid before Legislature -> six weeks after reassembly  
|  
no ordinance during dissolution or suspended functioning

*Caption: Article 239B is a recess ordinance, not Delhi's failure-of-machinery clause.*

## DEFINITION

Article 239B empowers Puducherry's Administrator, after Presidential instructions, to promulgate an ordinance when the Legislature is not in session and immediate action is necessary.

## ANSWER-GRABBING LINE

Article 239B is a temporally limited legislative substitute tied to a functioning legislature, whereas Article 239AB addresses failure of Delhi's constitutional machinery.

## MUST-WRITE KEYWORDS

Article 239B; prior Presidential instructions; recess; six weeks; dissolution; ordinance

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** The ordinance power is exceptional and institutionally supervised. **Named evidence:** Article 239B requires prior Presidential instructions, legislative laying and expiry six weeks after reassembly, and bars use during dissolution or suspension. **Analysis:** it bridges urgency without replacing the legislature indefinitely. **Qualification:** Article 239AA(8) adapts Article 239B to Delhi, while J&K has a separate statutory ordinance power in section 52.

## EVIDENCE AND EXPLANATION

- [FACT] An Article 239B ordinance is deemed an Act of the territorial Legislature.
- [FACT] It is void to the extent the Legislature itself could not validly enact the provision.
- [FACT] The Administrator may withdraw it after Presidential instructions.
- [LIMIT] Recess is not the same as dissolution or failure of constitutional machinery.

## PRELIMS TRAP

Article 239AB is not an ordinance provision.

## MAINS USE

Contrast 239B, 239AB and 240 whenever the question tests emergency law-making.

## RECAP

recess + urgency + President's instructions -> ordinance -> legislative control

# SESSION 12 - ARTICLE 240 PRESIDENTIAL REGULATIONS

## VISUAL FIRST

### ARTICLE 240 DIRECT TEXT

A&N | Lakshadweep | DNHDD | Puducherry (conditional)  
PLUS J&K Reorganisation Act, section 58  
Ladakh

### REGULATION

peace, progress and good government  
may amend/repeal applicable parliamentary Act or other law  
same force and effect as an Act of Parliament

*Caption: Article 240 is powerful but territorially enumerated.*

## DEFINITION

Article 240 authorises Presidential regulations for the peace, progress and good government of specified UTs.

## ANSWER-GRABBING LINE

Presidential regulation is primary territorial legislation with parliamentary-Act force, not an executive circular.

## MUST-WRITE KEYWORDS

Article 240; peace progress good government; specified UTs; force of Parliament Act; section 58

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Article 240 supplies a direct Union law-making route for selected territories. **Named evidence:** the constitutional list covers A&N, Lakshadweep, DNHDD and conditionally Puducherry; section 58 of the 2019 Act extends the route to Ladakh. **Analysis:** direct legislation fits legislature-free administration but can coexist with a dormant elected model in Puducherry. **Qualification:** Chandigarh is not in the Article 240 set.

## EVIDENCE AND EXPLANATION

- [FACT] A regulation may repeal or amend an applicable Act of Parliament or other law.
- [FACT] It has the same force and effect as an Act of Parliament applying to the territory.
- [FACT] For Puducherry, the power stops after the Legislature's first meeting while it functions and revives during dissolution or suspension.
- [LIMIT] Article 240 does not govern every UT merely because every UT falls under Article 239.

## PRELIMS TRAP

Do not include Chandigarh in the Article 240 list.

## MAINS USE

Use the provision to show why direct-administration UTs possess a distinct primary-law mechanism.

## RECAP

specified territory -> President regulation -> parliamentary force -> Puducherry conditional

# SESSION 13 - ARTICLE 241, COMMON HIGH COURTS AND JUDICIAL ACCESS

## VISUAL FIRST

Delhi -> Delhi High Court (separate UT High Court)  
A&N -> Calcutta HC | Chandigarh -> Punjab and Haryana HC  
DNHDD -> Bombay HC | Lakshadweep -> Kerala HC  
Puducherry -> Madras HC  
J&K + Ladakh -> common High Court of Jammu & Kashmir and Ladakh

*Caption: Judicial coverage is complete but institutionally shared in most UTs.*

## DEFINITION

Article 241 enables Parliament to constitute a High Court for a UT or extend or exclude a State High Court's jurisdiction to or from a UT.

## ANSWER-GRABBING LINE

Union administration does not mean absence of superior judicial review; Article 241 permits either a distinct or shared High Court arrangement.

## MUST-WRITE KEYWORDS

Article 241; High Court; extended jurisdiction; common court; Delhi; judicial review

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Judicial architecture follows functional allocation rather than a one-UT-one-court rule. **Named evidence:** Delhi has its own High Court; section 75 of the 2019 Act creates a common High Court for J&K and Ladakh; five other UTs use specified State High Courts. **Analysis:** shared courts conserve institutions while preserving constitutional remedies. **Qualification:** a circuit bench or territorial jurisdiction is not a separate High Court.

## EVIDENCE AND EXPLANATION

- [FACT] Article 241 applies Part VI High Court provisions subject to parliamentary modifications or exceptions.
- [FACT] Parliament may extend or exclude a State High Court's jurisdiction to or from a UT.
- [FACT] Article 242, formerly concerning Coorg, stands repealed.
- [LIMIT] General High Court powers belong to the judiciary topic; this topic owns the UT allocation map.

## PRELIMS TRAP

J&K and Ladakh share a common High Court; neither should be counted as a separate second UT High Court.

## MAINS USE

Use judicial coverage to rebut the claim that direct Union administration removes constitutional accountability.

## RECAP

Article 241 -> separate or extended jurisdiction -> Delhi alone separate -> J&K-Ladakh common

# SESSION 14 - PARLIAMENTARY REPRESENTATION, LOCAL GOVERNMENT AND FISCAL BOUNDARIES

## VISUAL FIRST

### PARLIAMENT

Lok Sabha: every UT has representation under parliamentary law  
Rajya Sabha allocation: Delhi 3 | Puducherry 1 | J&K 4

### LOCAL GOVERNMENT

Article 243L / 243ZB apply Panchayat/Municipality Parts to UTs with adaptations

### FISCAL

special laws/funds + parliamentary grants + GST architecture; no single UT template

*Caption: Representation and fiscal administration vary with population, legislature and statutory design.*

## DEFINITION

UT democratic and fiscal architecture includes parliamentary representation, constitutionally adapted local government and territory-specific public-finance arrangements.

## ANSWER-GRABBING LINE

A UT may lack a territorial legislature yet still possess parliamentary representation, elected local bodies and judicially reviewable public finance.

## MUST-WRITE KEYWORDS

Lok Sabha; Fourth Schedule; Rajya Sabha; Articles 243L and 243ZB; Consolidated Fund; GST

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** UT democracy is multi-level rather than assembly-or-nothing. **Named evidence:** all UTs elect Lok Sabha members; the Fourth Schedule allocates Council of States seats to Delhi, Puducherry and J&K; Articles 243L and 243ZB adapt rural and urban local government to UTs. **Analysis:** national, territorial and local representation can coexist in different combinations. **Qualification:** seat occupancy, grants and fiscal transfers are date-sensitive and must not be confused with constitutional allocation.

## EVIDENCE AND EXPLANATION

- [FACT] Fourth Schedule allocations are Delhi 3, Puducherry 1 and J&K 4.
- [FACT] The eight UTs together return 19 Lok Sabha members under the current constituency allocation.
- [FACT] Delhi, Puducherry and J&K statutes provide territorial legislative finance machinery; legislature-free UT expenditure remains within Union budgeting arrangements.
- [LIMIT] Finance Commission, GST and local-body treatment must be stated through the applicable Constitution and statute, not as one universal UT fiscal rule.

## PRELIMS TRAP

Absence of a UT Assembly does not imply absence of elected local government or Lok Sabha representation.

## MAINS USE

Use the multi-level map to qualify claims of a total democratic deficit.

## RECAP

Parliament representation + adapted local bodies + territory-specific finance

# SESSION 15 - DELHI'S EVOLUTION AND THE SIXTY-NINTH AMENDMENT



## VISUAL FIRST

1956: Delhi becomes UT  
-> Metropolitan Council / Executive Council phase  
1987 Balakrishnan Committee  
-> representative government with national-capital safeguards  
69th Amendment Act, 1991  
-> Articles 239AA and 239AB  
1 February 1992  
-> NCT Delhi + LG + Assembly + Council of Ministers

*Caption: Delhi's model is constitutionally entrenched but remains a Union Territory.*

## DEFINITION

Article 239AA is Delhi's special constitutional settlement balancing national-capital interests with representative government.

## ANSWER-GRABBING LINE

Delhi is sui generis because its elected institutions are constitutionally entrenched, yet its State-List field and executive control remain expressly qualified.

## MUST-WRITE KEYWORDS

Sixty-ninth Amendment; 1991; Article 239AA; NCT; Lieutenant Governor; national capital

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Delhi's special model responds to dual constituencies: local residents and the Union as national capital trustee. **Named evidence:** the Sixty-ninth Amendment inserted Articles 239AA and 239AB, redesignated Delhi as NCT and created an Assembly and CoM. **Analysis:** constitutional entrenchment protects representative government while reserving national-capital subjects. **Qualification:** NCT status is not Statehood and Parliament retains full UT competence.

## EVIDENCE AND EXPLANATION

- [FACT] Article 239AA took effect on 1 February 1992.
- [FACT] The Administrator is constitutionally designated Lieutenant Governor.
- [FACT] Delhi has 70 directly elected Assembly seats under parliamentary law.
- [CURRENT] The 106th Amendment inserted women's-reservation clauses into Article 239AA, but Article 334A conditions operational effect on a future census-linked delimitation.

## PRELIMS TRAP

The 69th Amendment was enacted in 1991 but the special scheme commenced in 1992.

## MAINS USE

Present Delhi as a constitutional accommodation, then evaluate whether divided control remains workable.

## RECAP

national-capital problem -> 69th Amendment -> NCT institutions -> retained Union safeguards

# SESSION 16 - DELHI LEGISLATIVE COMPETENCE, EXCLUSIONS AND REPUGNANCY

## VISUAL FIRST

### DELHI ASSEMBLY FIELD

State List + Concurrent List as applicable to UTs

- |
- +--> EXCLUDED: Entry 1 public order
- +--> EXCLUDED: Entry 2 police
- +--> EXCLUDED: Entry 18 land
- +--> related Entries 64, 65, 66 also excluded

PARLIAMENT retains every NCT field; Article 239AA(3)(c) resolves conflict

*Caption: The three headline exclusions must be read with their related offence, jurisdiction and fee entries.*

## DEFINITION

Article 239AA(3) grants Delhi legislative competence while reserving specified State List entries and preserving parliamentary supremacy.

## ANSWER-GRABBING LINE

Delhi's Assembly is broad but not plenary: its competence is entry-specific, territorially confined and vulnerable to parliamentary override.

## MUST-WRITE KEYWORDS

Entries 1, 2, 18; Entries 64-66; repugnancy; Presidential assent; later Parliament

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Delhi's autonomy is bounded by both subject exclusion and conflict hierarchy. **Named evidence:** Article 239AA(3)(a) excludes Entries 1, 2 and 18 plus related 64-66; clause (b) preserves Parliament; clause (c) supplies repugnancy, assent and later-override rules. **Analysis:** the Assembly can govern extensively without acquiring State-equivalent exclusivity. **Qualification:** services under Entry 41 are not textually one of the three exclusions, which explains the later litigation.

## EVIDENCE AND EXPLANATION

- [FACT] Public order, police and land are the three reserved headline fields.
- [FACT] Parliament may legislate before or after a Delhi Assembly law.
- [FACT] A President-assented Delhi law may prevail territorially until Parliament legislates again.
- [LIMIT] Reserved subjects do not justify LG control over every unrelated file.

## PRELIMS TRAP

Do not omit the related parts of Entries 64, 65 and 66.

## MAINS USE

Use field -> conflict -> assent -> later override as the legal sequence.

## RECAP

broad field -> three exclusions + related entries -> Parliament preserved -> repugnancy ladder

# SESSION 17 - DELHI EXECUTIVE: AID, ADVICE AND DIFFERENCE OF OPINION

## VISUAL FIRST

MATTER WITHIN DELHI ASSEMBLY FIELD  
|  
Council of Ministers decides  
|  
LG ordinarily acts on aid and advice  
|  
genuine difference?  
NO -> implement  
YES -> dialogue -> exceptional reference to President  
                    -> urgent interim action only where necessary

*Caption: The reference route is an exception within representative government, not a routine veto.*

## DEFINITION

Article 239AA(4) creates a CoM headed by the Chief Minister to aid and advise the LG in fields where the Assembly can legislate, subject to lawful discretion and the difference-of-opinion proviso.

## ANSWER-GRABBING LINE

Delhi's executive is a constitutional partnership in which elected advice is the rule and presidential reference the exceptional safety valve.

## MUST-WRITE KEYWORDS

Article 239AA(4); aid and advice; difference of opinion; President; urgency; collective responsibility

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Routine LG substitution would defeat collective responsibility. **Named evidence:** Article 239AA(4) links aid and advice to the Assembly's legislative field and permits Presidential reference on a difference; the 2018 Constitution Bench confined this route to exceptional, reasoned cases. **Analysis:** democratic accountability requires ministers normally to control implementation. **Qualification:** the LG retains authority in reserved fields and where law expressly requires discretion.

## EVIDENCE AND EXPLANATION

- [FACT] The CoM may not exceed ten per cent of the Assembly's total membership.
- [FACT] The President appoints the Chief Minister and other ministers on the Chief Minister's advice.
- [FACT] The CoM is collectively responsible to the Assembly.
- [LIMIT] Urgent interim action cannot convert every disagreement into permanent LG administration.

## PRELIMS TRAP

The constitutional text says 'any matter', but the 2018 Court rejected reading it as 'every matter'.

## MAINS USE

Explain both the ordinary advice rule and the exceptional escalation route.

## RECAP

elected field -> aid/advice -> rare difference -> President -> bounded urgency

**SESSION 18 - ARTICLE 239AB IS DELHI FAILURE OF MACHINERY, NOT AN ORDINANCE**

## VISUAL FIRST

### ARTICLE 239AB

Delhi administration cannot operate under Article 239AA/law  
OR proper administration requires intervention

|  
President may suspend specified 239AA/statutory provisions  
and make incidental/consequential arrangements

NOT ARTICLE 239B -> recess ordinance power

*Caption: The adjacent numbering conceals two different constitutional mechanisms.*

## DEFINITION

Article 239AB authorises the President to suspend specified parts of Delhi's special arrangement when constitutional administration fails or intervention is necessary for proper administration.

## ANSWER-GRABBING LINE

Article 239AB is Delhi's breakdown provision; Article 239B is a temporary legislative power during recess.

## MUST-WRITE KEYWORDS

Article 239AB; failure of machinery; suspension; Delhi; Article 239B distinction

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Breakdown administration and ordinance law-making must be separated. **Named evidence:** Article 239AB permits suspension of provisions of Article 239AA or its implementing law; Article 239B instead creates an ordinance that expires after legislative reassembly. **Analysis:** one restructures governance during failure, the other temporarily supplies legislation during recess. **Qualification:** Article 239AB resembles Article 356 functionally but is a distinct Delhi-specific text.

## EVIDENCE AND EXPLANATION

- [FACT] The President may act on an LG report or otherwise.
- [FACT] The order may include incidental and consequential provisions.
- [FACT] Article 239AA(8) adapts Article 239B to Delhi.
- [LIMIT] Do not call every political disagreement a failure of constitutional machinery.

## PRELIMS TRAP

AB = breakdown; B = ordinance.

## MAINS USE

Use the distinction to demonstrate constitutional precision in Delhi answers.

## RECAP

239AB breakdown/suspension != 239B recess ordinance

# SESSION 19 - THE 2018 DELHI CONSTITUTION BENCH

## VISUAL FIRST

### REPRESENTATIVE DEMOCRACY

- > executive power normally follows legislative power
- > LG bound by aid and advice within allotted field
- > LG has no independent decision-making power
- > dialogue and constitutional trust first
- > reference power exceptional, not mechanical

*Caption: The judgment protected the elected sphere without converting Delhi into a State.*

## DEFINITION

The 4 July 2018 Constitution Bench interpreted Article 239AA as a structure of representative government, collective responsibility and limited LG referral.

## ANSWER-GRABBING LINE

The 2018 judgment constitutionalised elected primacy within Delhi's allotted field, but left Union supremacy and reserved subjects intact.

## MUST-WRITE KEYWORDS

2018 Constitution Bench; representative government; constitutional morality; collaborative federalism; no independent decision; exceptional reference

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** The LG cannot function as an alternate executive on ordinary transferred matters. **Named evidence:** *Government of NCT of Delhi v Union of India* (2018) held that the LG has no independent decision-making power and that 'any matter' cannot mean 'every matter'. **Analysis:** otherwise ministers would be responsible to the Assembly without control over administration. **Qualification:** the holding operates within Delhi's legislative sphere and subject to parliamentary law.

## EVIDENCE AND EXPLANATION

- [FACT] The Court emphasised collective responsibility, constitutional morality and constitutional trust.
- [FACT] Differences should ordinarily be resolved through discussion and dialogue.
- [FACT] A valid reference leads to the President's decision, which the LG implements.
- [LIMIT] The case did not finally settle the later services allocation controversy.

## PRELIMS TRAP

Do not write that the 2018 judgment made the LG powerless on reserved or discretionary matters.

## MAINS USE

Use the ratio first, then assess whether later events show institutional settlement or continuing friction.

## RECAP

representative principle -> aid/advice -> no parallel executive -> exceptional reference

# SESSION 20 - THE 2023 DELHI SERVICES CONSTITUTION BENCH

## VISUAL FIRST

### ENTRY 41 SERVICES

not expressly excluded by Article 239AA(3)(a)

Delhi legislative competence

co-extensive executive competence

### TRIPLE CHAIN

civil servant -> minister -> legislature -> electorate

exception: services connected with public order, police or land

*Caption: The Court linked control over officers to democratic accountability.*

## DEFINITION

The 11 May 2023 Constitution Bench held that NCT Delhi possessed legislative and executive authority over services under Entry 41 outside the three reserved subject areas.

## ANSWER-GRABBING LINE

The services judgment treated administrative control as the operational foundation of ministerial responsibility in Delhi's non-reserved field.

## MUST-WRITE KEYWORDS

11 May 2023; Entry 41; services; triple chain; sui generis; co-extensive executive power

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Electoral accountability weakens when ministers cannot direct the officials implementing their policies. **Named evidence:** the 2023 Constitution Bench located Entry 41 within Delhi's field and described a triple chain from civil servants through ministers and the legislature to voters. **Analysis:** bureaucratic control connects legal competence to actual governance. **Qualification:** the holding excluded services connected with public order, police and land and was followed by parliamentary legislation.

## EVIDENCE AND EXPLANATION

- [FACT] The Court described NCTD as a sui generis model.
- [FACT] Executive power ordinarily extends over the same field as legislative power.
- [FACT] The Union retained executive authority over the expressly excluded subjects.
- [LIMIT] The judgment must not be presented as the complete current position after Act 19 of 2023.

## PRELIMS TRAP

Entry 41 is 'State public services; State Public Service Commission', not one of Entries 1, 2 or 18.

## MAINS USE

Use the triple chain as the named mechanism connecting services control with democracy.

## RECAP

Entry 41 -> Delhi field -> executive control -> triple-chain accountability -> reserved exceptions

# SESSION 21 - GNCTD AMENDMENT ACT 2023 AND THE CURRENT SERVICES POSITION

## VISUAL FIRST

MAY 2023 JUDGMENT

|  
2023 Ordinance -> Act 19 of 2023  
|  
NCCSA: CM + Chief Secretary + Principal Home Secretary  
|  
majority recommendation on covered services/vigilance matters  
|  
LG may accept / return with reasons  
|  
persistent difference -> LG decision final under statute

*Caption: Current writing must distinguish the constitutional holding from the later operative statute.*

## DEFINITION

The Government of NCT of Delhi (Amendment) Act, 2023 created the National Capital Civil Service Authority and a statutory LG-led final-decision mechanism for covered services matters.

## ANSWER-GRABBING LINE

As of 7 September 2026, the constitutional logic of the services judgment remains relevant, but Act 19 of 2023 supplies the operative statutory machinery unless and until invalidated.

## MUST-WRITE KEYWORDS

Act 19 of 2023; NCCSA; section 45E; section 45H; majority; LG final decision; pending challenge

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Delhi services law now has two distinct layers. **Named evidence:** the Constitution Bench recognised elected control in May 2023; Parliament then enacted Act 19, creating the three-member NCCSA and providing final LG authority after persistent disagreement. **Analysis:** the statute redistributes operational control without erasing the judgment's democratic reasoning. **Qualification:** the constitutional challenge remains pending; no final official Supreme Court merits judgment invalidating the Act was located by 7 September 2026.

## EVIDENCE AND EXPLANATION

- [FACT] The Chief Minister chairs NCCSA; the Chief Secretary and Principal Home Secretary are the other members.
- [FACT] Decisions are by majority of members present and voting.
- [FACT] Covered functions include transfer/posting recommendations for specified Group A and DANICS officers and vigilance matters, subject to statutory exclusions.
- [LIMIT] A pending challenge does not by itself suspend an enacted law.

## PRELIMS TRAP

Do not stop the legal chronology at the May 2023 judgment.

## MAINS USE

Write judgment -> statute -> pending challenge, clearly labelling constitutional holding and current operative law.

## RECAP

2023 holding -> Act 19 -> NCCSA majority -> LG final statutory position -> challenge pending

# SESSION 22 - PUDUCHERRY: ARTICLE 239A AND THE 1963 ACT

## VISUAL FIRST

### ARTICLE 239A

Government of Union Territories Act, 1963

30 elected members + up to 3 Central Government nominees

Legislature: applicable State + Concurrent List fields

Council of Ministers -> aid/advice -> LG

President's general control and statutory difference route

*Caption: Puducherry's legislature is statutory, broad in field and still Union-supervised.*

## DEFINITION

Puducherry is a UT with a legislature and Council of Ministers created under Article 239A through the Government of Union Territories Act, 1963.

## ANSWER-GRABBING LINE

Puducherry demonstrates that broad territorial legislative competence can coexist with statutory Union supervision and nominated representation.

## MUST-WRITE KEYWORDS

Article 239A; Government of UT Act 1963; section 3; section 18; section 21; sections 44-50

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Puducherry has substantial self-government without State-equivalent exclusivity. **Named evidence:** section 18 grants applicable State and Concurrent List fields; section 21 preserves parliamentary priority; sections 44-46 structure aid, advice, differences and ministerial government; section 50 preserves Presidential control. **Analysis:** elected responsibility operates inside a parliamentary statute. **Qualification:** the LG's discretion and reference powers must be traced to the Act rather than assumed from Delhi.

## EVIDENCE AND EXPLANATION

- [FACT] The Assembly has 30 directly elected members; the Central Government may nominate up to three eligible persons.
- [FACT] The President appoints the Chief Minister; other ministers are appointed on the Chief Minister's advice.
- [FACT] The CoM is collectively responsible to the Assembly.
- [LIMIT] The statutory model can be amended by Parliament through ordinary law.

## PRELIMS TRAP

Puducherry has no Delhi-style blanket exclusion of public order, police and land in section 18.

## MAINS USE

Use Puducherry to show the difference between a statutory legislature and Delhi's entrenched Article 239AA model.

## RECAP

239A -> 1963 Act -> elected plus nominated Assembly -> broad field -> Union supervision

# SESSION 23 - PUDUCHERRY LG-GOVERNMENT DOCTRINE AND K. LAKSHMINARAYANAN



## VISUAL FIRST

### ORDINARY GOVERNMENT BUSINESS

CoM advice under 1963 Act -> Administrator/LG  
lawful discretion or difference -> statutory route to President

### NOMINATED MEMBERS

Central Government -> up to 3 nominees  
K. Lakshminarayanan (2018) -> nomination upheld  
nominees vote as full members, including confidence and budget questions

*Caption: The nomination holding is precise and should not be converted into an unlimited LG power.*

## DEFINITION

Puducherry's LG-government relationship is governed by the 1963 Act's aid-and-advice, discretion, reference and Presidential-control provisions, while *K. Lakshminarayanan* specifically addressed nominated Assembly members.

## ANSWER-GRABBING LINE

The Puducherry doctrine requires statutory precision: elected advice is institutionally central, but nomination and specified supervisory powers remain with Union authorities.

## MUST-WRITE KEYWORDS

aid and advice; difference; President; Central nomination; K. Lakshminarayanan 2018; voting rights

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** The 2018 nomination case confirms statutory Union power without deciding every executive dispute. **Named evidence:** *K. Lakshminarayanan v Union of India* upheld Central nomination under section 3(3), found no mandatory Chief Minister concurrence and recognised nominees' voting status. **Analysis:** nominations can affect legislative confidence and therefore carry democratic significance. **Qualification:** use sections 44-50, not an overbroad reading of this nomination judgment, for general LG-CoM relations.

## EVIDENCE AND EXPLANATION

- [FACT] The Supreme Court judgment is dated 6 December 2018.
- [FACT] Nominated members may vote on Assembly questions, including budget and no-confidence matters.
- [FACT] Article 239B provides the recess ordinance route with prior Presidential instructions.
- [LIMIT] The case does not make Puducherry identical to Delhi or establish a free-standing LG veto.

## PRELIMS TRAP

Do not describe the three nominees as non-voting experts.

## MAINS USE

Separate the holding on nomination from the broader statutory executive relationship.

## RECAP

1963 Act governs advice -> K. Lakshminarayanan governs nomination -> no unlimited LG inference

# SESSION 24 - JAMMU AND KASHMIR REORGANISATION ACT 2019

## VISUAL FIRST

```
ERSTWHILE STATE OF J&K
|
J&K Reorganisation Act, 2019
appointed day: 31 October 2019
|
+--> J&K UT with Legislature
      |      s.13 Article 239A | s.14 Assembly
      |
+--> Ladakh UT without Legislature
      |      s.58 Article 239 administration/regulations
```

*Caption: One State was reorganised into two Union Territories with unequal democratic structures.*

## DEFINITION

The J&K Reorganisation Act, 2019 created the UT of Jammu and Kashmir with a legislature and the UT of Ladakh without a legislature.

## ANSWER-GRABBING LINE

The 2019 settlement replaced State-level federal autonomy with two Union Territory models, one representative and one directly administered.

## MUST-WRITE KEYWORDS

31 October 2019; section 13; section 14; J&K with legislature; Ladakh without legislature; Article 3

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Reorganisation altered both territory and the vertical distribution of power. **Named evidence:** section 13 applies Article 239A to J&K, section 14 creates its Assembly, and section 58 places Ladakh under a President-appointed LG with regulation power. **Analysis:** the successors share origin but not institutions.

**Qualification:** the Supreme Court later left J&K's UT conversion undecided on merits after recording the Union's Statehood assurance, while upholding Ladakh's UT creation.

## EVIDENCE AND EXPLANATION

- [FACT] The appointed day was 31 October 2019.
- [FACT] Parliament retains Article 246(4) authority for both UTs.
- [FACT] The 2019 Act also establishes a common High Court under section 75.
- [LIMIT] Full Article 370 doctrine belongs to the special-provisions topic; this session owns post-2019 UT institutions.

## PRELIMS TRAP

Do not give Ladakh a legislature because J&K has one.

## MAINS USE

Use territorial change, institutional change and judicial qualification as separate paragraphs.

## RECAP

2019 Act -> J&K legislature + Ladakh no legislature -> common Union supremacy

# SESSION 25 - J&K ASSEMBLY: POWERS, FUNCTIONS AND UNION LIMITS

## VISUAL FIRST

### J&K LEGISLATIVE ASSEMBLY

90 elected constituencies used in 2024 election

legislates: State + Concurrent Lists as applicable

excluded: public order + police

functions: law | budget | grants | appropriation | debate | confidence | committees

limits: Parliament all fields | assent/reservation | LG discretion | statutory design

*Caption: The Assembly is functionally real but constitutionally weaker than a State legislature.*

## DEFINITION

The J&K Assembly is a statutory UT legislature exercising law-making, financial and accountability functions under the 2019 Act.

## ANSWER-GRABBING LINE

J&K's Assembly restores representative government without restoring the exclusive State-List position or executive architecture of Statehood.

## MUST-WRITE KEYWORDS

section 32; section 35; budget; appropriation; collective responsibility; 90 elected constituencies

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** The Assembly has genuine legislative and accountability functions. **Named evidence:** section 32 grants applicable State and Concurrent List competence except public order and police; section 35 preserves parliamentary priority; financial provisions authorise budget and appropriation scrutiny; section 53 makes the CoM collectively responsible. **Analysis:** voters can sanction territorial policy through the House. **Qualification:** LG and Parliament retain powers unavailable in an ordinary State framework.

## EVIDENCE AND EXPLANATION

- [FACT] Land is not a blanket excluded field under section 32.
- [FACT] The 2024 Assembly election covered 90 elected constituencies.
- [FACT] The Chief Minister is appointed by the LG and the CoM may not exceed ten per cent of Assembly membership.
- [LIMIT] Statutory competence can be altered by Parliament and remains subject to constitutional review.

## PRELIMS TRAP

Do not describe the J&K Assembly as merely advisory or, conversely, as a restored State legislature.

## MAINS USE

For the 2025 PYQ, classify nature first, then cover legislative, financial and accountability functions, then limitations.

## RECAP

statutory Assembly -> broad field minus police/public order -> finance/confidence -> Parliament/LG limits

# SESSION 26 - J&K LIEUTENANT GOVERNOR, COUNCIL AND 2024 BUSINESS RULES

## VISUAL FIRST

### SECTION 53

CoM aids/advises within Assembly field

LG discretion:

outside Assembly field

law-required discretion/judicial functions

All India Services + Anti-Corruption Bureau

|

2024 Second Amendment Rules

specified police/public order/AIS/ACB, law, prosecution,

prisons, forensic and senior-posting business routed through prescribed LG channels

*Caption: The rules sharpen routing and control; they do not abolish elected government.*

## DEFINITION

J&K executive government is a statutory aid-and-advice system with express LG discretion and detailed transaction-of-business routing.

## ANSWER-GRABBING LINE

J&K's executive balance is more Union-weighted than a State's because the Act expressly reserves fields and discretion while preserving collective responsibility in the granted sphere.

## MUST-WRITE KEYWORDS

section 53; aid and advice; AIS; ACB; G.S.R. 386(E); business rules; LG discretion

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** J&K's elected executive operates through a legally divided command structure. **Named evidence:** section 53 reserves out-of-field, legally discretionary, AIS and ACB matters to the LG; the 2024 Second Amendment Rules prescribe routes for specified security, legal and senior-personnel business. **Analysis:** routing determines who receives information and can delay or approve action. **Qualification:** the rules regulate business allocation; they do not nullify the Assembly or collective responsibility.

## EVIDENCE AND EXPLANATION

- [FACT] Section 52 separately provides the J&K LG's recess ordinance power.
- [FACT] Section 73 provides the J&K statutory failure-of-machinery route.
- [FACT] The elected Council assumed office after the 2024 Assembly election.
- [LIMIT] A statutory declaration of discretion remains subject to constitutional limits and judicial review.

## PRELIMS TRAP

Do not apply Delhi's Article 239AA difference-of-opinion text directly to J&K.

## MAINS USE

Use legal field, officer control and transaction routing to explain the autonomy gap.

## RECAP

Assembly field -> CoM advice -> express LG discretion -> detailed business routing

# SESSION 27 - J&K ELECTION, ARTICLE 370 JUDGMENT AND STATEHOOD STATUS

## VISUAL FIRST

11 Dec 2023: In Re Article 370

- > elections directed by 30 Sep 2024
- > Statehood restoration at earliest/as soon as possible

2024: ECI conducts Assembly election

- > elected Assembly and Council function

7 Sep 2026:

- > J&K remains a Union Territory
- > no enacted Statehood conversion located

*Caption: Elected government has returned; Statehood has not.*

## DEFINITION

The current J&K status combines a functioning elected UT government with an unresolved commitment to restore Statehood.

## ANSWER-GRABBING LINE

The 2024 election fulfilled the representative-government direction, but an election to a UT Assembly is not legal restoration of Statehood.

## MUST-WRITE KEYWORDS

In Re Article 370; 11 December 2023; 30 September 2024; ECI election; Statehood assurance; current UT

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Judicial direction and political assurance must be stated with their exact legal effect. **Named evidence:** *In Re Article 370* directed Assembly elections by 30 September 2024 and Statehood restoration at the earliest and as soon as possible; the ECI completed the 2024 election. **Analysis:** electoral restoration repaired representative absence while leaving federal status unchanged. **Qualification:** the Court fixed no Statehood date and did not finally decide the conversion issue after the Union's assurance.

## EVIDENCE AND EXPLANATION

- [CURRENT] J&K had a functioning elected Assembly and Council as of 7 September 2026.
- [CURRENT] No official enactment restoring Statehood was located by the control date.
- [FACT] The judgment left Ladakh's UT creation undisturbed.
- [LIMIT] 'Statehood assured' must not be written as 'Statehood restored'.

## PRELIMS TRAP

Do not confuse completion of the 2024 election with conversion from UT to State.

## MAINS USE

Use assurance -> judicial direction -> election compliance -> pending status as the current sequence.

## RECAP

2023 judgment -> 2024 election -> elected UT government -> Statehood still pending

# SESSION 28 - LADAKH AND THE DNHDD MERGER

## VISUAL FIRST

### LADAKH

31 Oct 2019 -> UT without legislature  
section 58 -> LG + Article 240 regulation route  
common HC with J&K

### DNH + DAMAN AND DIU

Merger Act 2019  
26 Jan 2020 -> one UT: DNHDD  
Administrator + Article 240 + Bombay HC

*Caption: These two changes explain the fall from nine UTs to the current eight.*

## DEFINITION

Ladakh is a legislature-free UT created by the 2019 J&K reorganisation, while DNHDD is a merged UT created by the 2019 merger statute effective in 2020.

## ANSWER-GRABBING LINE

Recent UT change has moved in opposite directions: one State produced two UTs, while two UTs were consolidated into one.

## MUST-WRITE KEYWORDS

Ladakh; section 58; no legislature; Merger Act 2019; 26 January 2020; DNHDD

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Territorial arithmetic must be tied to statutory commencement. **Named evidence:** J&K and Ladakh commenced as separate UTs on 31 October 2019; the DNH-DD merger took effect on 26 January 2020. **Analysis:** the first change increased and the second reduced the UT count, producing eight. **Qualification:** merger or creation does not by itself determine whether a legislature exists; the governing Act does.

## EVIDENCE AND EXPLANATION

- [FACT] Section 58 authorises Presidential regulations for Ladakh under Article 240.
- [FACT] Ladakh has no Legislative Assembly.
- [FACT] DNHDD falls under Bombay High Court jurisdiction.
- [LIMIT] Contemporary safeguard or Statehood demands are political claims unless converted into law.

## PRELIMS TRAP

Do not say Ladakh is expressly named in Article 240's constitutional list; its route is section 58.

## MAINS USE

Use both statutes to demonstrate dynamic territorial design under Article 3.

## RECAP

2019 split adds two -> 2020 merger combines two -> current count eight

# SESSION 29 - STATEHOOD TRAJECTORIES AND NON-LINEAR TERRITORIAL STATUS

## VISUAL FIRST

FORMER UT -> STATE

Himachal Pradesh 1971

Manipur + Tripura 1972

Mizoram + Arunachal Pradesh 1987

Goa 1987

CONTINUING / ALTERED UT

Delhi special NCT | Puducherry statutory model

J&K promised Statehood but pending | Ladakh no legislature

*Caption: UT status can be transitional, durable or internally redesigned.*

## DEFINITION

A Statehood trajectory is the constitutional and statutory movement by which a territory changes category or gains a different representative structure.

## ANSWER-GRABBING LINE

Indian territorial federalism is evolutionary: past UT-to-State transitions show possibility, not an automatic constitutional timetable.

## MUST-WRITE KEYWORDS

Statehood; transition; Article 3; Himachal Pradesh; North-East; Goa; no automatic right

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Historical precedent supports constitutional flexibility but not a universal entitlement. **Named evidence:** six former UTs became States between 1971 and 1987, while Delhi received a special NCT framework and Puducherry retained statutory self-government. **Analysis:** population, security, identity, viability and political agreement shape trajectories. **Qualification:** each conversion requires constitutional-parliamentary action; analogy cannot substitute for law.

## EVIDENCE AND EXPLANATION

- [FACT] Himachal Pradesh became a State in 1971; Manipur and Tripura in 1972.
- [FACT] Mizoram, Arunachal Pradesh and Goa became States in 1987.
- [FACT] Chandigarh has remained a UT and shared capital under a distinct political settlement.
- [LIMIT] Past transitions do not prove when or whether J&K or Ladakh must change status.

## PRELIMS TRAP

Do not present UT status as either permanently fixed or automatically temporary.

## MAINS USE

Use trajectories as comparative evidence, then return to the exact current statute.

## RECAP

status can change -> precedent informs debate -> Parliament must enact change

# SESSION 30 - WHY UT ADMINISTRATION IS HETEROGENEOUS

## VISUAL FIRST

NATIONAL CAPITAL -> Delhi: reserved sovereign-city functions  
ISLAND / FRONTIER -> A&N, Lakshadweep, Ladakh: strategic coordination  
HISTORICAL DISTINCTIVENESS -> Puducherry, DNHDD  
SHARED CAPITAL -> Chandigarh  
POST-REORGANISATION TRANSITION -> J&K



Different institutions, same constitutional demand: accountable lawful government

*Caption: Asymmetry is functional only when matched by accountability and proportionality.*

## DEFINITION

UT heterogeneity is the deliberate use of different constitutional and statutory arrangements for territories with different national and local governance needs.

## ANSWER-GRABBING LINE

The Union Territory category is unified by Union responsibility but diversified by legislative, executive, judicial and fiscal design.

## MUST-WRITE KEYWORDS

asymmetry; functional differentiation; national capital; strategic territory; accountability; proportionality

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Asymmetry can improve fit but also diffuse accountability. **Named evidence:** Delhi reserves three national-capital fields, Article 240 supports direct regulation in specified territories, and Puducherry/J&K retain elected institutions under statutes. **Analysis:** tailored structures address distinct risks and scale. **Qualification:** functional reasons cannot justify routine obstruction, indefinite democratic suspension or unsupported centralisation.

## EVIDENCE AND EXPLANATION

- [ANALYSIS] The correct evaluation asks whether Union control is necessary, textually grounded and proportionate.
- [ANALYSIS] Elected responsibility requires access to staff, information, finance and implementation tools.
- [FACT] Courts remain available to police legal boundaries.
- [LIMIT] No single ranking of autonomy captures all UT institutions.

## PRELIMS TRAP

Do not describe the Centre-UT relationship as uniformly unitary without acknowledging legislatures and judicial doctrine.

## MAINS USE

Use function, democracy and accountability as the three evaluation criteria.

## RECAP

different reasons -> different models -> same tests of legality, necessity and accountability

# SESSION 31 - REFORM AGENDA AND ANSWER-WRITING SPINE



## VISUAL FIRST

### QUESTION

- > define UT model and date-stamp current status
- > identify exact Article / Act / section
- > map legislative field and reserved subjects
- > map executive advice, discretion and escalation
- > add named case/current institution
- > diagnose accountability gap
- > propose calibrated reform
- > conclude with Union interest + representative government

*Caption: A high-scoring answer follows law to institution to outcome to qualification.*

## DEFINITION

The UT answer spine is a disciplined method for converting constitutional text and current law into evaluative analysis.

## ANSWER-GRABBING LINE

Union control is legitimate only when anchored in law, confined to the justified field and reconciled with transparent responsibility to elected institutions.

## MUST-WRITE KEYWORDS

definition; legal source; field; mechanism; named evidence; accountability; qualification; reform

## UNION TERRITORIES PARAGRAPH LAB

**Claim:** Reform should reduce blame-shifting without erasing necessary Union interests. **Named evidence:** Delhi's reference disputes, Puducherry's nomination design and J&K's divided personnel control show where authority and electoral responsibility can diverge. **Analysis:** reasoned references, published business protocols, time limits, legislative scrutiny and clear officer accountability can reduce friction. **Qualification:** reforms must remain territory-specific; a uniform Statehood prescription ignores constitutional purpose and strategic context.

## EVIDENCE AND EXPLANATION

- [ANALYSIS] Require written reasons and prompt timelines for reserved or referred matters.
- [ANALYSIS] Align departmental accountability, officer control and budget responsibility wherever law permits.
- [ANALYSIS] Strengthen Assembly committees and local bodies without confusing them with sovereign State institutions.
- [LIMIT] Constitutional change, statutory amendment and better convention are different reform instruments.

## PRELIMS TRAP

A reform answer that says only 'grant Statehood' does not address the internal mechanics of existing UT government.

## MAINS USE

End with a qualified formula: necessary Union guardianship plus non-obstructionist representative government.

## RECAP

exact source -> power map -> accountability test -> calibrated reform -> qualified conclusion

This section contains exactly 32 original MCQs before the PYQs. The answer sequence is ABCD repeated eight times. Every option has a separate explanation and every question has a unique examiner trap.

## BASIC MCQS / REMEDIATION

### MCQ 1

As on 7 September 2026, which statement is correct?

A. India has eight Union Territories. B. Dadra and Nagar Haveli and Daman and Diu are separate UTs. C. Only Delhi and Puducherry have legislatures. D. Ladakh has a legislature.

**Answer: A.**

### Option explanations

- A: Correct: the current total is eight.
- B: The two territories were merged into one UT from 26 January 2020.
- C: J&K also has a legislature and an elected government.
- D: Ladakh is a UT without a legislature.

**Examiner trap 1:** Count after both the 2019 split and the 2020 merger.

### MCQ 2

The general constitutional rule for administration of Union Territories is contained in:

A. Article 238. B. Article 239. C. Article 240. D. Article 246(4).

**Answer: B.**

### Option explanations

- A: Article 238 was repealed and does not supply the current rule.
- B: Correct: Article 239 places administration through the President and an appointed Administrator.
- C: Article 240 is the narrower regulation power for specified UTs.
- D: Article 246(4) is Parliament's all-subject legislative competence for territories not included in a State.

**Examiner trap 2:** Administration, regulation and parliamentary competence are three different provisions.

### MCQ 3

Which statement best states the legal significance of the title 'Lieutenant Governor'?

A. It always gives powers identical to a State Governor. B. It necessarily implies an elected territorial legislature. C. Its powers depend on the governing Constitution, Act and rules rather than the title alone. D. It is a title elected by the territorial Assembly.

**Answer: C.**

### Option explanations

- A: A State Governor and a UT LG occupy different constitutional frameworks.
- B: A&N and Ladakh use LGs but have no Assembly.
- C: Correct: designation does not determine the legal field or discretion.
- D: The President appoints the Administrator/LG.

**Examiner trap 3:** Never infer power merely from nomenclature.

### MCQ 4

Parliament's general power to legislate on a State List matter for a territory not included in a State flows from:

A. Article 239A. B. Article 239B. C. Article 240. D. Article 246(4).

**Answer: D.**

### Option explanations

- A: Article 239A enables specified local legislatures and Councils.
- B: Article 239B concerns ordinances.
- C: Article 240 concerns Presidential regulations for specified UTs.
- D: Correct: Article 246(4) expressly reaches any matter, including the State List.

**Examiner trap 4:** Article 240 is not the source of Parliament's general State-List power.

### MCQ 5

Article 239A currently authorises Parliament by law to create a legislature or Council of Ministers for:

A. Puducherry, with its provisions also applied to J&K by section 13 of the 2019 Act. B. Delhi alone. C. Every UT automatically. D. Only legislature-free UTs.

**Answer: A.**

#### Option explanations

- A: Correct: the constitutional text names Puducherry and section 13 applies it to J&K.
- B: Delhi's special source is Article 239AA.
- C: The provision is enabling and territorially specific, not automatic.
- D: It creates representative institutions rather than targeting only legislature-free administration.

**Examiner trap 5:** Separate the current Article text from statutory application to J&K.

### MCQ 6

Article 239A was inserted by the:

A. Seventh Amendment Act, 1956. B. Fourteenth Amendment Act, 1962. C. Sixty-ninth Amendment Act, 1991. D. Twenty-seventh Amendment Act, 1971.

**Answer: B.**

#### Option explanations

- A: The Seventh Amendment created the modern Part VIII framework.
- B: Correct: the Fourteenth Amendment inserted Article 239A.
- C: The Sixty-ninth Amendment inserted Delhi's Articles 239AA and 239AB.
- D: The Twenty-seventh Amendment inserted Article 239B and amended Article 240.

**Examiner trap 6:** Match each amendment to its distinct UT mechanism.

### MCQ 7

Failure of constitutional machinery in NCT Delhi is specifically governed by:

A. Article 356 alone. B. Article 239B. C. Article 239AB. D. Section 73 of the J&K Reorganisation Act.

**Answer: C.**

#### Option explanations

- A: Article 356 is the State provision; Delhi has its own text.
- B: Article 239B is a recess ordinance power.
- C: Correct: Article 239AB permits suspension of specified Delhi arrangements.
- D: Section 73 is the separate J&K statutory mechanism.

**Examiner trap 7:** AB denotes Delhi breakdown; B denotes ordinance.

### MCQ 8

Under Article 239B, Puducherry's Administrator may promulgate an ordinance when:

A. The Assembly is dissolved. B. The Assembly is in session. C. No Presidential instructions have been obtained. D. The Assembly is not in session, immediate action is necessary and prior Presidential instructions are obtained.

**Answer: D.**

#### Option explanations

- A: The second proviso bars the power during dissolution.
- B: An ordinance is unnecessary and unavailable while the House is in session.
- C: Prior Presidential instructions are mandatory.

- D: Correct: all three conditions reflect the constitutional text.

**Examiner trap 8:** Recess, dissolution and suspension are legally different conditions.

### MCQ 9

Which is part of Article 240's direct constitutional list?

A. Andaman and Nicobar Islands. B. Chandigarh. C. NCT Delhi. D. Jammu and Kashmir UT.

**Answer: A.**

#### Option explanations

- A: Correct: A&N is expressly listed.
- B: Chandigarh is absent from Article 240.
- C: Delhi is governed by Article 239AA and related law.
- D: J&K with legislature is governed by the 2019 Act, not Article 240's list.

**Examiner trap 9:** Memorise the enumerated territories rather than all UTs.

### MCQ 10

Which statement about Chandigarh is correct?

A. It has an Article 239AA legislature. B. It is administered under Article 239 but is not in Article 240's specified regulation set. C. It is part of Punjab for all constitutional purposes. D. It elects members to the Rajya Sabha.

**Answer: B.**

#### Option explanations

- A: Article 239AA applies only to Delhi.
- B: Correct: Chandigarh uses Article 239 administration without Article 240 enumeration.
- C: It is a separate UT and shared capital, not territory of Punjab.
- D: The Fourth Schedule allocates no Council of States seat to Chandigarh.

**Examiner trap 10:** Shared capital does not erase separate UT status.

### MCQ 11

Article 241 primarily concerns:

A. UT ordinances. B. Statehood conversion. C. High Courts for Union Territories and extension or exclusion of jurisdiction. D. Presidential regulations.

**Answer: C.**

#### Option explanations

- A: Ordinances are governed by Article 239B or specific statutes.
- B: Territorial reorganisation is addressed through Articles 1-4 and parliamentary law.
- C: Correct: Article 241 is the UT High Court provision.
- D: Regulations are governed by Article 240.

**Examiner trap 11:** Article 241 is institutional jurisdiction, not territorial law-making.

### MCQ 12

Which Union Territory has a separate High Court of its own?

A. Puducherry. B. Jammu and Kashmir. C. Chandigarh. D. NCT Delhi.

**Answer: D.**

#### Option explanations

- A: Puducherry is under Madras High Court.
- B: J&K shares a common High Court with Ladakh.
- C: Chandigarh is under Punjab and Haryana High Court.
- D: Correct: Delhi has its own High Court.

**Examiner trap 12:** A common High Court and a separate UT High Court are not the same.

### MCQ 13

The merger of Dadra and Nagar Haveli with Daman and Diu took effect on:

A. 26 January 2020. B. 31 October 2019. C. 1 November 1956. D. 1 February 1992.

**Answer: A.**

#### Option explanations

- A: Correct: the merger statute commenced on 26 January 2020.
- B: This is the appointed day for J&K and Ladakh UTs.
- C: This is the Seventh Amendment reorganisation date.
- D: This is the commencement of Delhi's special NCT scheme.

**Examiner trap 13:** The Act year 2019 and effective date 2020 are different.

### MCQ 14

Which set contains all current UTs with legislatures?

A. Delhi and Puducherry only. B. Delhi, Puducherry and Jammu and Kashmir. C. Delhi, J&K and Ladakh. D. Puducherry, Chandigarh and J&K.

**Answer: B.**

#### Option explanations

- A: This omits J&K's elected statutory Assembly.
- B: Correct: these are the three legislative UTs.
- C: Ladakh has no Assembly.
- D: Chandigarh has no territorial legislature.

**Examiner trap 14:** The 2024 J&K election makes the three-legislature answer operationally visible.

### MCQ 15

Article 239AA excludes which three headline State List subjects from Delhi's Assembly?

A. Agriculture, irrigation and markets. B. Services, finance and local government. C. Public order, police and land. D. Prisons, public health and education.

**Answer: C.**

#### Option explanations

- A: These are not the three constitutional exclusions.
- B: Services is Entry 41 and was central to separate litigation.
- C: Correct: Entries 1, 2 and 18 are excluded.
- D: These subjects are not the three blanket exclusions.

**Examiner trap 15:** Also remember related Entries 64, 65 and 66 insofar as they concern 1, 2 and 18.

### MCQ 16

If a President-assented Delhi Assembly law conflicts with parliamentary law in the same field, which is most accurate?

A. The Delhi law can never operate. B. The Delhi law permanently binds Parliament. C. The LG alone chooses which law applies. D. The Delhi law may prevail in NCT Delhi, but Parliament may later add to, amend, vary or repeal it.

**Answer: D.**

#### Option explanations

- A: The first proviso creates an assent qualification.
- B: The second proviso preserves later parliamentary power.
- C: The conflict rule is constitutional, not a free LG choice.
- D: Correct: this states both temporary territorial priority and later override.

**Examiner trap 16:** Presidential assent gives priority, not permanent immunity.

### MCQ 17

The 2018 Delhi Constitution Bench held that:

A. The LG has no independent decision-making power within the elected sphere and reference must not become routine. B. Delhi became a full State. C. Parliament lost Article 246(4) power. D. Land moved to the Delhi Assembly.

**Answer: A.**

#### Option explanations

- A: Correct: aid and advice is the rule, with exceptional reference.
- B: The Court did not confer Statehood.
- C: Parliamentary competence remained intact.
- D: Land remains an excluded Entry 18 field.

**Examiner trap 17:** Representative primacy is bounded by Delhi's constitutional field.

### MCQ 18

The 2023 Delhi services judgment used the 'triple chain of accountability' to connect:

A. President, Parliament and Supreme Court. B. Civil servants, ministers, the legislature and the electorate. C. Police, land and public order. D. NCCSA, ECI and Finance Commission.

**Answer: B.**

#### Option explanations

- A: That is not the administrative accountability chain used by the Court.
- B: Correct: officer accountability runs through ministers and the House to voters.
- C: These are reserved subjects, not accountability actors.
- D: These institutions do not form the Court's triple-chain reasoning.

**Examiner trap 18:** Services doctrine is about democratic control over implementation.

### MCQ 19

As on 7 September 2026, the safest statement on Delhi services is:

A. The May 2023 judgment alone is the complete current rule. B. The 2023 Act has been finally struck down. C. Act 19 of 2023 remains operative while its constitutional challenge is unresolved. D. Delhi has no executive authority over any non-reserved field.

**Answer: C.**

#### Option explanations

- A: Later parliamentary legislation must be included.
- B: No final official merits judgment striking it down was located.
- C: Correct: this separates operative law from pending adjudication.
- D: Article 239AA and the 2018 doctrine preserve an elected sphere.

**Examiner trap 19:** Always sequence constitutional holding, later statute and pending challenge.

### MCQ 20

Under Act 19 of 2023, persistent disagreement over an NCCSA recommendation is finally decided by the:

A. Chief Minister alone. B. Chief Secretary. C. President directly in every case. D. Lieutenant Governor under the statutory mechanism.

**Answer: D.**

#### Option explanations

- A: The Chief Minister chairs but does not possess a unilateral vote.
- B: The Chief Secretary is one member.
- C: The statutory process routes the matter to the LG rather than requiring direct Presidential decision in every instance.
- D: Correct: the LG's decision is final after the statutory disagreement process.

**Examiner trap 20:** NCCSA majority and final LG decision are distinct stages.

### MCQ 21

Puducherry's Assembly composition under the 1963 Act is best described as:

A. Thirty elected members plus up to three Central Government nominees. B. Seventy elected members only. C. Ninety elected members plus five nominees. D. A wholly nominated legislature.

**Answer: A.**

#### Option explanations

- A: Correct: section 3 supplies this structure.
- B: Seventy is Delhi's Assembly strength.
- C: Ninety is the elected J&K constituency count used in 2024.
- D: Puducherry has a directly elected core.

**Examiner trap 21:** The nominees are additional full members, not non-voting advisers.

### MCQ 22

In K. Lakshminarayanan (2018), the Supreme Court upheld:

A. A Delhi services ordinance. B. Central nomination of Puducherry Assembly members without mandatory Chief Minister concurrence. C. J&K's conversion into a UT. D. Article 240 regulations for Chandigarh.

**Answer: B.**

#### Option explanations

- A: The case concerned Puducherry nominees, not Delhi services.
- B: Correct: the nomination power and nominees' voting status were upheld.
- C: That issue arose in the Article 370 litigation.
- D: Chandigarh is not in Article 240.

**Examiner trap 22:** Do not turn a nomination judgment into a general unlimited-LG doctrine.

### MCQ 23

J&K Assembly competence under section 32 excludes:

A. Land and agriculture. B. Services and taxation. C. Public order and police. D. All State List subjects.

**Answer: C.**

#### Option explanations

- A: Land is not a blanket exclusion.
- B: These are not the two section 32 exclusions.
- C: Correct: Entries 1 and 2 are excluded.
- D: The Assembly has a broad applicable State and Concurrent List field.

**Examiner trap 23:** Delhi excludes three headline fields; J&K excludes two.

### MCQ 24

Which comparison is constitutionally accurate?

A. Both Delhi and J&K exclude land. B. Neither Delhi nor J&K excludes police. C. Puducherry excludes all three Delhi reserved subjects. D. Delhi excludes land, whereas J&K section 32 does not blanket-exclude it.

**Answer: D.**

#### Option explanations

- A: J&K does not have Delhi's Entry 18 exclusion.
- B: Both exclude police.
- C: Section 18 of the 1963 Act has no equivalent blanket three-entry exclusion.
- D: Correct: this is the key close-option distinction.

**Examiner trap 24:** Do not copy Delhi's field into the J&K answer.

### MCQ 25

Which event established a functioning elected J&K UT Assembly after reorganisation?

A. The 2024 Assembly election conducted by the ECI. B. The 2019 appointed day alone. C. The DNHDD merger. D. The 69th Amendment.

**Answer: A.**

#### Option explanations

- A: Correct: the 2024 election restored elected territorial government.
- B: The 2019 Act created the institution but elections followed later.
- C: That merger concerns another UT.



- D: The 69th Amendment concerns Delhi.

**Examiner trap 25:** Creation of an Assembly in law and constitution of an elected House are different stages.

### MCQ 26

The Supreme Court's 2023 Article 370 judgment stated that J&K Statehood should be restored:

- A. By a fixed date of 30 September 2024. B. At the earliest and as soon as possible, without fixing a Statehood date.  
C. Only after a constitutional amendment. D. Automatically upon the 2024 election.

**Answer: B.**

#### Option explanations

- A: 30 September 2024 was the election deadline, not a Statehood deadline.
- B: Correct: the formulation gave no fixed date.
- C: Parliamentary reorganisation law, not necessarily Article 368, controls the status change.
- D: Election did not legally convert the UT into a State.

**Examiner trap 26:** Separate the election deadline from the Statehood assurance.

### MCQ 27

Ladakh's Presidential regulation route is expressly supplied by:

- A. Article 239AA. B. Article 239B. C. Section 58 of the J&K Reorganisation Act read with Article 240. D. The Government of UT Act, 1963.

**Answer: C.**

#### Option explanations

- A: Article 239AA is Delhi-specific.
- B: Article 239B is the Puducherry recess-ordinance provision.
- C: Correct: section 58 authorises Article 240 regulations for Ladakh.
- D: The 1963 Act principally structures Puducherry.

**Examiner trap 27:** Ladakh is not textually listed in Article 240 itself.

### MCQ 28

The common High Court for J&K and Ladakh is established by:

- A. Article 239B. B. The Delhi High Court Act. C. Article 240 alone. D. Section 75 of the J&K Reorganisation Act, consistently with Article 241.

**Answer: D.**

#### Option explanations

- A: Article 239B supplies a recess ordinance route, not a High Court.
- B: The Delhi statute has no role in J&K/Ladakh.
- C: Article 240 concerns regulations, not court allocation.
- D: Correct: section 75 supplies the common-court rule.

**Examiner trap 28:** Use the specific reorganisation section with the general Article 241 framework.

### MCQ 29

Which pair adapts Panchayat and Municipality constitutional parts to Union Territories?

A. Articles 243L and 243ZB. B. Articles 239AB and 239B. C. Articles 240 and 241. D. Articles 330A and 334A.

**Answer: A.**

#### Option explanations

- A: Correct: these provisions apply Parts IX and IXA to UTs subject to Presidential adaptations.
- B: These concern Delhi breakdown and ordinances.
- C: These concern regulations and High Courts.
- D: These concern women's representation and activation.

**Examiner trap 29:** Territorial legislatures are not the only form of elected government in a UT.

### MCQ 30

Which UTs receive seats in the Council of States under the current Fourth Schedule?

A. All eight UTs. B. Delhi, Puducherry and Jammu and Kashmir. C. Only Delhi. D. Delhi and Chandigarh.

**Answer: B.**

#### Option explanations

- A: The Fourth Schedule does not allocate seats to every UT.
- B: Correct: allocations are Delhi 3, Puducherry 1 and J&K 4.
- C: Puducherry and J&K also have allocations.
- D: Chandigarh has no Rajya Sabha allocation.

**Examiner trap 30:** Lok Sabha representation and Rajya Sabha allocation follow different rules.

### MCQ 31

The 106th Amendment clauses inserted into Article 239AA concerning women become operational:

A. Immediately for every Delhi seat from 2023. B. Only by an LG notification. C. After the census-linked delimitation condition in Article 334A is satisfied. D. Only after Delhi becomes a State.

**Answer: C.**

#### Option explanations

- A: The inserted text does not mean immediate seat reservation.
- B: The LG is not the constitutional trigger.
- C: Correct: Article 334A links operation to delimitation after publication of the relevant census figures.
- D: Statehood is not required.

**Examiner trap 31:** Distinguish constitutional insertion from operational commencement.

### MCQ 32

Which statement best captures the UT system?

A. Every UT is governed identically from New Delhi. B. Every UT with a legislature is constitutionally a State. C. Administrator titles determine the full legal design. D. Union responsibility is common, but legislative, executive, judicial and fiscal arrangements are asymmetric.

**Answer: D.**

#### Option explanations

- A: Part VIII and special statutes create substantial variation.
- B: A territorial legislature does not confer Statehood.
- C: Titles are not a source of complete power.

- D: Correct: asymmetry is the defining institutional fact.

**Examiner trap 32:** The best answer rejects both uniform-central-rule and disguised-State simplifications.

## PYQS AND ANSWER PRACTICE

### VERIFIED PYQS

#### PYQ 1 - UPSC CSE Mains 2018, GS-II, Question 11

**Question:** Whether the Supreme Court Judgement (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine.

**15 marks | 250 words | Verified official-paper wording**

**Demand:** Identify the legal character, state the controlling provision or holding, analyse the institutional consequence, and end with the exact qualification.

#### Model answer

The July 2018 Constitution Bench settled a constitutional principle, not the whole politics of shared rule. Article 239AA gives Delhi an elected Assembly and Council of Ministers for State and Concurrent List matters except public order, police and land. The Court held that executive power ordinarily follows this legislative field, the Lieutenant Governor has no independent decision-making power, and the proviso permitting reference to the President must be exceptional rather than routine. These holdings protect collective responsibility and prevent an unelected parallel executive.

Yet the judgment could not remove structural conflict. Parliament retains competence over every NCT matter, the three reserved fields remain Union-controlled, and Article 239AA preserves a difference-of-opinion route. The May 2023 services Constitution Bench applied democratic accountability to Entry 41, but Parliament then enacted Act 19 of 2023, creating NCCSA and giving the LG the final statutory decision after persistent disagreement. Its constitutional challenge remained unresolved on 7 September 2026.

Thus, the judgment settled the norm of elected primacy within Delhi's allotted field, but not every legal or political contest. Durable settlement requires textually confined Union intervention, reasoned references, institutional dialogue and accountability for delay.

**Final-key discipline:** This is a Mains question; no objective answer key is invented.

## PYQ 2 - UPSC CSE Mains 2025, GS-II, Question 4

**Question:** Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir.

**10 marks | 150 words | Verified from locally held official paper; spelling retained**

**Demand:** Identify the legal character, state the controlling provision or holding, analyse the institutional consequence, and end with the exact qualification.

### Model answer

The Jammu and Kashmir Assembly is an elected legislature of a Union Territory, not a State legislature. The 2019 Act applies Article 239A through section 13 and creates the Assembly under section 14; the 2024 election made the institution operational.

Section 32 authorises laws on applicable State and Concurrent List matters except public order and police. Land is not blanket-excluded. The House legislates, debates policy, votes grants, authorises appropriation, examines audit, exercises privileges and holds the Chief Minister-led Council collectively responsible. Bills remain subject to Lieutenant-Governor assent or reservation, while section 35 preserves parliamentary priority.

The institution therefore restores representative government but not State-level federal autonomy. Parliament can legislate on every UT field, and section 53 preserves significant LG discretion, including All India Services and the Anti-Corruption Bureau. As on 7 September 2026, J&K had an elected government but remained a Union Territory; the Supreme Court's Statehood assurance had not become a conversion law.

**Final-key discipline:** This is a Mains question; no objective answer key is invented.

## ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

**Original Mains 1 - 10 marks - Explain why India uses different models of Union Territory administration.**

**Word ceiling:** 150

### Model answer

Union Territories permit differentiated territorial governance where a full State model may not match national-capital, strategic, historical or scale considerations. Article 239 supplies the common default: the President administers through an appointed Administrator. Article 240 adds direct regulation for specified territories, while Article 246(4) gives Parliament competence over every legislative field.

The Constitution and Parliament then vary democratic depth. Delhi has a constitutionally entrenched Assembly under Article 239AA; Puducherry has a statutory Assembly under Article 239A and the 1963 Act; J&K has a statutory Assembly under the 2019 Act. A&N, Chandigarh, DNHDD, Ladakh and Lakshadweep have no territorial legislature.

This asymmetry can fit distinct needs, but divided authority can blur accountability. Therefore, Union control should be textually grounded and proportionate, while elected institutions should control the staff, finance and implementation tools attached to their lawful sphere.

### Original Mains 2 - 10 marks - Distinguish Articles 239AB, 239B and 240.

**Word ceiling:** 150

#### Model answer

The three provisions address different failures or gaps. Article 239AB is Delhi's failure-of-constitutional-machinery clause. If NCT administration cannot operate under Article 239AA or its implementing law, the President may suspend specified provisions and make consequential arrangements.

Article 239B is a recess ordinance power for Puducherry's Administrator, adapted to Delhi by Article 239AA(8). It requires immediate necessity and prior Presidential instructions; the ordinance must be laid before the Legislature and ordinarily expires six weeks after reassembly. It cannot be used during dissolution or suspended functioning.

Article 240 is primary Presidential regulation-making for specified UTs: A&N, Lakshadweep, DNHDD and conditionally Puducherry; section 58 extends the route to Ladakh. A regulation has parliamentary-Act force and may amend applicable law.

Thus, 239AB restructures Delhi government during breakdown, 239B temporarily legislates during recess, and 240 directly legislates for enumerated territories.

### Original Mains 3 - 15 marks - Examine the current constitutional and statutory position on control of services in Delhi.

**Word ceiling:** 250

#### Model answer

Delhi services must be explained chronologically. Article 239AA gives the Assembly State and Concurrent List competence except public order, police and land, while preserving Parliament's power. In 2018, the Constitution Bench held that the Lieutenant Governor ordinarily acts on ministerial aid and advice within this allotted field, has no independent decision-making power, and may not refer every disagreement to the President.

On 11 May 2023, another Constitution Bench held that Entry 41 services was not among the three express exclusions. It treated NCT Delhi as sui generis and linked officer control to the triple chain of accountability: civil servants answer to ministers, ministers to the Assembly, and the Assembly to voters. Services connected with reserved subjects remained outside NCT control.

Parliament then enacted the Government of NCT of Delhi (Amendment) Act, 2023. It created NCCSA, comprising the Chief Minister, Chief Secretary and Principal Home Secretary. Covered transfer, posting and vigilance recommendations are decided by majority; the LG may return a recommendation with reasons and has the final statutory decision if disagreement persists.

Therefore, the constitutional holding supports elected control, but Act 19 of 2023 supplies the current operative machinery. As on 7 September 2026, no final official Supreme Court merits judgment striking down that Act was located; its challenge remained pending.

#### Original Mains 4 - 15 marks - Compare the democratic design of Puducherry and Jammu and Kashmir.

Word ceiling: 250

##### Model answer

Puducherry and Jammu and Kashmir are statutory legislative Union Territories linked to Article 239A, but their designs are not identical. Puducherry's institutions arise through the Government of Union Territories Act, 1963. Its thirty elected members may be joined by up to three Central Government nominees. Section 18 grants applicable State and Concurrent List competence without Delhi's blanket three-subject exclusion; section 21 preserves parliamentary supremacy.

J&K's institutions arise through the Reorganisation Act, 2019. Section 13 applies Article 239A and section 14 creates the Assembly. Section 32 grants applicable State and Concurrent List competence except public order and police; land is not blanket-excluded. Section 35 preserves parliamentary priority. The 2024 election established a functioning ninety-constituency elected House.

Both have Councils collectively responsible to their Assemblies, budgets, appropriation and law-making. Yet Union supervision differs. Puducherry uses the 1963 Act's advice, difference and Presidential-control framework; *K. Lakshminarayanan* upheld Central nomination and nominees' full voting rights. J&K section 53 expressly reserves out-of-field matters, All India Services and the Anti-Corruption Bureau to LG discretion, reinforced by 2024 business rules.

Thus, both provide bounded self-government, but J&K's security and personnel reservations make its current executive architecture more explicitly Union-weighted.

#### Original Mains 5 - 20 marks - Critically analyse asymmetric governance of India's Union Territories and suggest reforms.

Word ceiling: 250

##### Model answer

Union Territory asymmetry combines one constitutional default with several institutional models. Article 239 places administration through the President; Article 246(4) gives Parliament all-subject competence. Yet Delhi has Article 239AA institutions, Puducherry and J&K have statutory legislatures, and five UTs lack territorial legislatures. Article 240 applies only to specified territories, while Article 241 produces separate or shared High Court arrangements.

The design has functional strengths. National-capital security supports Delhi's reserved fields; island and frontier territories require Union coordination; Puducherry's history and J&K's transition justify tailored institutions. Parliamentary representation, local bodies under Articles 243L and 243ZB, and judicial review prevent the legislature/no-legislature distinction from becoming a democracy/no-democracy binary.

However, asymmetry can divide power from responsibility. Delhi's services litigation shows that ministers may face voters while officer control lies elsewhere. Puducherry's nominated members can affect confidence. J&K's police, public-order, AIS and ACB arrangements create a strong LG pole. Repeated reference, unclear business routing and opaque delay can convert safeguards into obstruction.

Reform should be calibrated: publish subject and business-allocation maps; require written reasons and time limits for references; align officer, budget and service responsibility where law permits; strengthen Assembly committees and local bodies; and periodically review whether exceptional Union control remains proportionate.

The objective is not mechanical uniformity or automatic Statehood, but transparent asymmetry: Union guardianship confined to justified fields and effective representative government elsewhere.

**Original Mains 6 - 20 marks - Analyse the constitutional significance of the 2019 J&K reorganisation and the subsequent restoration of elected government.**

**Word ceiling: 250**

**Model answer**

The 2019 reorganisation was constitutionally significant because it changed both territory and federal status. Acting through parliamentary legislation, the former State was divided from 31 October 2019 into J&K, a Union Territory with a legislature, and Ladakh, a Union Territory without one. Section 13 applies Article 239A to J&K; section 14 creates its Assembly; section 58 places Ladakh under an LG and Article 240 regulation route.

J&K's Assembly is representative but not State-equivalent. Section 32 grants applicable State and Concurrent List competence except public order and police; section 35 preserves parliamentary supremacy. The House votes supply, authorises appropriation, debates policy and holds the Council collectively responsible. Section 53 nevertheless gives the LG discretion outside the Assembly field and over All India Services and the Anti-Corruption Bureau.

In *In Re Article 370* (2023), the Supreme Court directed Assembly elections by 30 September 2024 and Statehood restoration at the earliest. It did not finally adjudicate J&K's conversion after recording the Union's assurance, while Ladakh's creation remained undisturbed. The ECI conducted the 2024 election, restoring an elected Assembly and Council.

This restored democratic accountability but not Statehood. As on 7 September 2026, J&K remained a UT. The constitutional challenge is therefore to make the statutory government effective while Parliament fulfils the Statehood assurance through lawful territorial reorganisation.

## OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

### WOMEN'S RESERVATION: TEXT INSERTED, OPERATION DEFERRED

106th Amendment, 2023

- > inserts Article 239AA(2)(ba)-(bc) for Delhi
- > J&K Reorganisation (Second Amendment) Act, 2023 creates a parallel statutory route
- > Article 334A / statutory equivalent links operation to census-based delimitation
- [FACT] The official Constitution updated 1 May 2026 records the Delhi clauses as effective from 16 April 2026.
- [LIMIT] Insertion into the constitutional text is not the same as immediate reservation of seats; Article 334A postpones operation until the specified census-linked delimitation.
- [ANALYSIS] The design expands descriptive representation while deliberately linking seat rotation and implementation to a future delimitation cycle.

### GOODS AND SERVICES TAX AND TERRITORIAL FINANCE

| Question                                                                     | Safe formulation                                                                                                                                                                |
|------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Is every UT fiscally identical?                                              | No. Legislative UTs possess territory-specific Consolidated Fund and appropriation machinery; legislature-free UT expenditure is integrated more directly with Union budgeting. |
| Does Article 246A erase Article 246(4)?                                      | No. GST has a special distribution, while Article 246(4) remains the general UT rule.                                                                                           |
| Are all UTs governed by the Union Territory GST Act in exactly the same way? | No. Legislative UTs have their own GST legislation within the constitutional framework; other UTs use the UTGST route.                                                          |
| Does a Finance Commission recommendation permanently settle UT finance?      | No. Award periods, grant criteria and implementation are dated.                                                                                                                 |

## REPRESENTATION WITHOUT STATEHOOD

- [FACT] All eight UTs have Lok Sabha representation under parliamentary constituency law.
- [FACT] The Fourth Schedule allocates Rajya Sabha seats to Delhi (3), Puducherry (1) and J&K (4).
- [FACT] Articles 243L and 243ZB permit adaptation of Panchayat and Municipality provisions to UTs.
- [ANALYSIS] Democratic representation therefore exists at national, territorial and local levels in different combinations.
- [LIMIT] Representation does not itself create exclusive legislative competence or Statehood.

## A PROPORTIONALITY TEST FOR UNION CONTROL

Is there a constitutionally recognised Union interest?

- > Is the power traceable to Article, Act or valid rule?
- > Is intervention confined to the reserved field?
- > Are reasons recorded and review available?
- > Can elected responsibility still operate in the remaining sphere?

This test converts an abstract federalism debate into an institutional analysis. It neither assumes that every Union intervention is illegitimate nor treats strategic or capital status as a blank cheque.

## CONSOLIDATED REGISTER NOTES

### One-line thesis

Union Territories are constitutionally integrated territories governed through asymmetric combinations of Presidential administration, parliamentary supremacy and, in three cases, bounded representative self-government.

### Evolution and current map

Part C / Part D -> Seventh Amendment + States Reorganisation Act 1956

- > former UTs become States at different times
- > 31 Oct 2019: J&K + Ladakh created
- > 26 Jan 2020: DNH + Daman and Diu merged
- > 7 Sep 2026: eight UTs

**With legislatures:** Delhi, Puducherry, J&K. **Without legislatures:** A&N, Chandigarh, DNHDD, Ladakh, Lakshadweep.

### Constitutional spine

| Provision      | Meaning                                                                         |
|----------------|---------------------------------------------------------------------------------|
| Articles 1-4   | territorial inclusion and parliamentary reorganisation                          |
| Article 239    | President administers through appointed Administrator                           |
| Article 239A   | ordinary-law legislature/CoM route for Puducherry; applied to J&K by section 13 |
| Article 239AA  | Delhi NCT, Assembly, competence, CoM, advice and conflict rules                 |
| Article 239AB  | failure of constitutional machinery in Delhi                                    |
| Article 239B   | Puducherry recess ordinance with Presidential instructions; adapted to Delhi    |
| Article 240    | Presidential regulations for specified UTs; Ladakh through section 58           |
| Article 241    | separate or shared High Court arrangements                                      |
| Article 242    | Coorg provision repealed by Seventh Amendment                                   |
| Article 246(4) | Parliament may legislate on any matter for territory not included in a State    |



## Current administrative ledger - 7 September 2026

| UT                                       | Legislature | Administrative designation in current practice | High Court            |
|------------------------------------------|-------------|------------------------------------------------|-----------------------|
| Andaman and Nicobar Islands              | No          | Lieutenant Governor                            | Calcutta              |
| Chandigarh                               | No          | Administrator                                  | Punjab and Haryana    |
| Dadra and Nagar Haveli and Daman and Diu | No          | Administrator                                  | Bombay                |
| NCT Delhi                                | Yes         | Lieutenant Governor                            | Delhi                 |
| Jammu and Kashmir                        | Yes         | Lieutenant Governor                            | common J&K and Ladakh |
| Ladakh                                   | No          | Lieutenant Governor                            | common J&K and Ladakh |
| Lakshadweep                              | No          | Administrator                                  | Kerala                |
| Puducherry                               | Yes         | Lieutenant Governor                            | Madras                |

**Warning:** designation does not itself define power.

## Three legislatures

| Feature         | Delhi                                      | Puducherry                                  | J&K                   |
|-----------------|--------------------------------------------|---------------------------------------------|-----------------------|
| source          | Article 239AA                              | Article 239A + 1963 Act                     | 2019 Act + section 13 |
| character       | constitutional special NCT                 | statutory                                   | statutory             |
| exclusions      | public order, police, land + related 64-66 | no equivalent blanket three-entry exclusion | public order, police  |
| CM appointed by | President                                  | President                                   | LG                    |
| Parliament      | all-subject competence retained            | retained                                    | retained              |

## Delhi doctrine

69th Amendment 1991 / effective 1992

- > 2018: aid/advice, no independent LG decision, rare reference
- > 11 May 2023: services Entry 41 + triple-chain accountability
- > Act 19 of 2023: NCCSA + LG final statutory decision on persistent difference
- > 7 Sep 2026: Act operative; constitutional challenge unresolved

- Reserved fields: public order, police, land.
- Repugnancy: parliamentary law prevails; President-assented Delhi law may prevail locally until later Parliament acts.
- Article 239AB = Delhi breakdown.
- Article 239B = ordinance, not breakdown.
- Women's reservation clauses are in the text but operational effect awaits Article 334A conditions.

## Puducherry

- Fourteenth Amendment inserted Article 239A; Government of UT Act, 1963 supplies detail.
- 30 elected members + up to 3 Central nominees.
- Section 18: applicable State and Concurrent List competence.
- Section 21: parliamentary priority with assent qualification and later override.
- Sections 44-50: advice, difference, ministers, business and Presidential control.
- Article 239B: ordinance in recess with prior Presidential instructions; not during dissolution/suspension.
- Article 240 returns during dissolution/suspension.
- *K. Lakshminarayanan* (2018): nominations upheld; no mandatory CM concurrence; nominees vote as full members.

## J&K and Ladakh

- 31 October 2019 appointed day.
- J&K: section 13 Article 239A; section 14 Assembly; section 32 excludes public order/police; section 35 parliamentary priority; section 52 ordinance; section 53 CoM/LG; section 73 failure; section 75 common HC.
- 2024 ECI election: functioning 90-constituency elected Assembly.
- 2024 business-rule amendments preserve specified LG routing/control.
- *In Re Article 370* directed elections by 30 September 2024 and Statehood at earliest/as soon as possible; no fixed Statehood date.
- As on 7 September 2026 J&K remains a UT.
- Ladakh: no Assembly; section 58 authorises Article 240 regulation; common High Court with J&K.

## Parliament, courts, local government and finance

- Article 246(4) is the general all-list Parliament power.
- Article 240 is narrower and enumerated.
- Delhi alone has a separate UT High Court.
- Rajya Sabha allocations: Delhi 3, Puducherry 1, J&K 4.
- Articles 243L and 243ZB adapt Panchayat/Municipality provisions to UTs.
- Fiscal and GST arrangements are territory- and statute-specific; never claim one universal UT template.

## High-yield traps

1. Eight UTs, not nine.
2. Three legislatures: Delhi, Puducherry, J&K.
3. Administrator is not a State Governor.
4. Article 239AB is Delhi breakdown; Article 239B is ordinance.
5. Chandigarh is outside Article 240.
6. Ladakh enters the regulation route through section 58.
7. Delhi excludes public order, police and land; J&K excludes only public order and police.
8. Puducherry nominees vote.
9. The May 2023 services holding is not the whole current law; add Act 19.
10. J&K election is not Statehood restoration.

## Mains answer spine

define the UT model

- > date-stamp the current map
- > cite exact Article / Act / section
- > identify legislative field and exclusions
- > explain advice, discretion, reference or override
- > add named case/current evidence
- > diagnose accountability
- > qualify and propose calibrated reform

## Qualified conclusion

India's UT system is neither a uniform unitary residue nor a disguised federation of mini-States. Its legitimacy depends on keeping exceptional Union powers legally bounded while making elected institutions effective and answerable within their assigned sphere.